

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 05/13/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties, or failure to specify in detail the nature of the contest to the Court's tentative ruling, will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with California Rules of Court Rule no. 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09> ID: 161
950 4895
Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C24-03039 CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL *FURTHER CASE MANAGEMENT CONFERENCE FILED BY: <u>*TENTATIVE RULING:*</u>

This Case Management Conference (CMC) trails the hearing for Line 8. If the tentative ruling is uncontested, this CMC is continued to August 26, 2026 at 9:00 a.m. to trial the Motion for Reconsideration.

2. 9:00 AM CASE NUMBER: C24-03057 CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK *FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing on the City of Walnut Creek's Demurrer to Plaintiff's Complaint. Since the Demurrer is not opposed, this Case Management Conference is **vacated**. No appearance is required on May 13, 2026.

3. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 14. If the tentative ruling is uncontested, this CMC is continued to September 2, 2026 at 9:00 a.m..

4. 9:00 AM CASE NUMBER: N25-1365

CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference (CMC) trails the hearing for Line 17. If the tentative ruling is uncontested, this CMC is continued to August 13, 2026 at 8:30 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-00737

CASE NAME: SAHAR VS. SHEFAYEE JR.; MILLER

***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS INCURRED ON APPEAL CCP 425.16(C)(1)**

FILED BY: MILLER, RAYMOND R.

TENTATIVE RULING:

Summary

Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal, filed on November 18, 2025 was continued from March 24, 2026 to April 15, 2026 because the Court was not satisfied that Defendant filed proof of service to Plaintiffs of this Motion.

On April 15, 2026, the Court convened the hearing and found, again, that procedural issues pertaining to service remain. (See Unreported Minute Order dated April 15, 2026). The Court continued the hearing from April 15 to May 13, 2026 and allowed Plaintiffs to file an opposition.

To date, no opposition has been filed with the Court. As such, there is good cause to grant

Defendant's Motion for Attorney's Fees and Costs against Plaintiffs incurred on appeal.

Ruling

1. Defendant Raymond R. Miller's ("Defendant" or "Miller") Motion for Attorney's fees and Costs against Plaintiffs Joseph Sahar, Nathan Sahar and Michele Sahar ("Plaintiffs") incurred on Appeal is **granted**.
2. Plaintiff shall pay \$30,000 in attorney's fees and \$1,022 in costs, for a total of \$31,022 no later than thirty (30) days from the date of service of this order.
3. Defendant's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling to the proposed order.
4. No appearance is required at the hearing on May 13, 2026.

6. 9:00 AM CASE NUMBER: C23-01839

CASE NAME: DREW MALM VS. SCOTT HAMMEL

HEARING ON SUMMARY MOTION

FILED BY: HAMMEL, SCOTT

TENTATIVE RULING:

Introduction

Before the Court is Defendants SCOTT HAMMEL INDIVIDUALLY AND AS TRUSTEE OF THE JOAN E. SENAUSKY SURVIVORS TRUST; LUBOFF SENAUSKY, AN INDIVIDUAL; MARK WILLIAM SENAUSKY, AN INDIVIDUAL; VAL STEPHEN SENAUSKY, AN INDIVIDUAL; HILL HOUSE PROPERTY, LLC, A CALIFORNIA LIMITED LIABILITY COMPANY's ("Defendants") Motion for Summary Judgment, or in the alternative summary adjudication to Plaintiff Drew Malm's Second Amended Complaint ("SAC").

After sustaining Defendants' demurrers, the only remaining causes of action in the SAC are (1) the First Cause of Action for Breach of Contract against Hammel only; (2) the Sixth Cause of Action for Intentional Interference with Contractual Relations against Luboff only; and (3) the Seventh Cause of Action for Voidable Transfer (Civil Code § 3439.04) against all Defendants.³ (Ex. 10.)

For the following reasons, the Motion for Summary Judgment is granted.

Factual Background

Plaintiff Drew Malm was retained by Scott Hammel ("Hammel"), in his capacity as Trustee of the Joan E. Senavsky Survivors Trust (the "Trust"), to market and attempt to sell the real properties located at 140 Cielo Via and 0 Arbol Via, Walnut Creek, California (collectively, the "Properties"). (Undisputed Material Fact ("UMF") No. 1.) The Trust and Malm entered into a Residential Listing Agreement (the "Listing Agreement") on November 2, 2020. (UMF No. 2.) No offers to purchase the Properties were obtained during the initial listing period, so at Malm's request, the Listing Agreement was extended with the new expiration date to be December 31, 2021. (S. Hammel Decl., ¶ 5.) During the extended listing period, Malm obtained a single written offer to purchase the Properties from the Potential Buyers.¹ (UMF No. 3.) During their contingency period, Potential Buyers decided to cancel their purchase offer because they had concerns with the legal description of the property and its boundary lines. (UMF No. 4.) The Listing Agreement expired on December 31, 2021. (UMF No. 5.)

By way of Grant Deed recorded on May 8, 2023, Hammel, as Trustee of the Trust, granted the Properties to Defendant Luboff Senavsky ("Luboff"), Mark William Senavsky ("Mark")² and Defendant Val Stephen Senavsky ("Stephen"), in their individual capacities (collectively, the "Beneficiaries"). (UMF No. 6.) Luboff, Mark and Stephen were the sole beneficiaries of the Trust. (UMF No. 8.) Luboff, Mark and Stephen simultaneously granted their interests in the Properties into Defendant Hill House Property, LLC ("Hill House"). (UMF No. 7.) Defendants argue his was a simple transaction whereby the beneficiaries of a Trust decided to disburse the Trust's asset to them. Malm takes the position that he is entitled to a commission of "no less than \$450,000" on the inter-party transfers of the Properties from the Trust to the Beneficiaries.

The facts are undisputed that the Properties did not sell during the Listing Period. (UMF No. 9.) The Properties were not sold or transferred within 365 days of the end of the Listing Period. (UMF No. 10.) Defendants posit the Properties were not withdrawn from sale, conveyed, leased, rented, otherwise transferred, or made unmarketable by a voluntary act of Seller during the Listing Period, or any extension." (UMF No. 11.)

Plaintiff's Contractual Commission Obligation

Section 3 of the Listing Agreement identifies the specific situations in which a commission is earned by Plaintiff. It provides in full:

3. COMPENSATION TO BROKER: Notice: The amount or rate of real estate commissions is not fixed by law. They are set by each Broker individually and may be negotiable between Seller and Broker (real estate commissions include all compensation and fees to Broker). A. Seller agrees to pay to Broker as compensation for services irrespective of agency relationship(s), either 6.000 percent of the listing price (or if a purchase agreement is entered into, of the purchase price), or \$ _____, AND

_____, as follows: (1) If during the Listing Period, or any extension, Broker, cooperating broker, Seller or any other person procures a ready, willing, and able buyer(s) whose offer to purchase the Property on any price and terms is accepted by Seller, provided the Buyer completes the transaction or is prevented from doing so by Seller. (Broker is entitled to compensation whether any escrow resulting from such offer closes during or after the expiration of the Listing Period, or any extension.) OR (2) If within 365 calendar days (a) after the end of the Listing Period or any extension; or (b) after any cancellation of this Agreement, unless otherwise agreed, Seller enters into a contract to sell, convey, lease or otherwise transfer the Property to anyone ("Prospective Buyer") or that person's related entity: (i) who physically entered and was shown the Property during the Listing Period or any extension by Broker or a cooperating broker; or (ii) for whom Broker or any cooperating broker submitted to Seller a signed, written offer to acquire, lease, exchange or obtain an option on the Property. Seller, however, shall have no obligation to Broker under paragraph 3A(2) unless, not later than the end of the Listing Period or any extension or cancellation, Broker has given Seller a written notice of the names of such Prospective Buyers. OR (3) If, without Broker's prior written consent, the Property is withdrawn from sale, conveyed, leased, rented, otherwise transferred, or made unmarketable by a voluntary act of

Seller during the Listing Period, or any extension. (Ex. 1, Sec. 3(A)(2).)

In the SAC, Plaintiff offers three theories as to why he deserves a commission. First, Malm claims that Hammel agreed to transfer the Properties to Luboff, Mark and Stephen within 365 days of the termination of the Listing Period, but conspired with them to wait until after 365 days elapsed to do so in order to prevent Malm from receiving a commission. His second theory is that Hammel was aware of the boundary line issues with the Properties and intentionally withheld this information from Malm with the apparent goal of making any sale of the Properties impossible. Third, Malm claims that Luboff intentionally contacted the Potential Buyers with the goal of disrupting the Listing Agreement. (Ex. 10.)

Legal Standard

A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a)(1).)

Section 437c(p)(1) provides, in relevant part:

A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

In ruling on a summary judgment motion, the Court must “accept as true the facts . . . in the evidence of the party opposing summary judgment and the reasonable inferences that can be drawn from them” and “must view the evidence in the light most favorable to plaintiff as the losing party and liberally construe plaintiff’s evidentiary submissions and strictly scrutinize defendant’s own evidence, in order to resolve any evidentiary doubts or ambiguities in plaintiff’s favor.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254.)

“ '[S]ummary judgment cannot be granted when the facts are susceptible to more than one reasonable inference ' ” (*Husman v. Toyota Motor Credit Corp.* (2017) 12 Cal.App.5th 1168, 1180; *Cohen v. Five Brooks Stable* (2008) 159 Cal.App.4th 1476, 1497.) “All doubts as to the propriety of granting the motion—i.e., whether there is any triable issue of material fact—are to be resolved in favor of the party opposing the motion.” (*Cohen v. Five Brooks Stable, supra*, 159 Cal.App.4th at 1483.)

Analysis

Breach of Written Contract

“A cause of action for breach of contract requires proof of the following elements: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach.” (*CDF Firefighters v. Maldonado* (2008) 158 Cal.App.4th 1226, 1239.)

In the SAC, Malm offers three theories as to why he deserves a commission. First, Plaintiff Malm claims that Hammel agreed to transfer the Properties to Luboff, Mark and Stephen within 365 days of

the termination of the Listing Period, but conspired with them to wait until after 365 days elapsed to do so in order to prevent Malm from receiving a commission. His second theory is that Hammel was aware of the boundary line issues with the Properties and intentionally withheld this information from Malm with the apparent goal of making any sale of the Properties impossible. Third, Plaintiff claims that Luboff intentionally contacted the Potential Buyers with the goal of disrupting the Listing Agreement. (Ex. 10, SAC, ¶¶ 32, 33.)

1) Failing to Disclose Boundary Line Issues

Plaintiff's first theory of breach is belied by the undisputed fact that Hammel had no knowledge of any boundary line or legal description issues until Malm disclosed them to him. (UMF No. 16.) Plaintiff also concedes in his deposition that he did not know if Mr. Hammel was aware of any boundary line issues. (Ex. 13, 15:23-16:5.) This theory fails.

2) Beneficiary Defendants Causing Cancellation of the Sale

Plaintiff's second theory contains a genuine dispute of material fact.

Both Buyers 1 and 2 were each asked directly why they cancelled the transaction and both responded that it was because of boundary and title issues. (Ex. 4, 19:2-20:14; Ex. 3, 31:16-23.) Buyer 2 added that Luboff going to their front gate had no effect on their decision to cancel the transaction. (Ex. 4, 36:15-22.)

Plaintiff proffers evidence of Buyers agent Karen Riely recalled that she told Plaintiff that Buyer 2 was livid about Luboff physically showing up to the gate of the Buyers property and could potentially blow up the transaction. (AUMF 33, 39.) This offers an evidence backed alternative to Defendant's theory that Buyers cancelled the transaction because of boundary and title issues.

Plaintiff additionally contends that Buyer 1 in their deposition acknowledge that "if we canceled for a reason not covered in the contract, we might be subject to losing the deposit." (AUMF 49; McReynolds Decl., ¶ 6, Ex. I to AOE, [Buyer 1 Depo, 45:6-47:24 & 48:16-17].) The Buyers not wanting to lose their deposit is yet another alternative theory for Buyers cancelling the transaction.

A triable issue of material fact exists if the evidence and inferences therefrom would allow a reasonable juror to find the underlying fact in favor of the party opposing summary judgment. (*Murchison v. County of Tehama* (2021) 69 Cal.App.5th 867, 881 citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Here, there is a question of disputed fact as to why the Buyers canceled the transaction, and it requires the trier of fact to weigh competing evidence of the testimony of the buyers, the buyer's agent and the surrounding circumstances.

a. Conspiracy and Aiding and Abetting Theory

"An independent civil wrong is required for the claim of civil conspiracy, the elements of which "are (1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1406, fn. 7.)

The SAC alleges a conspiracy theory against Defendants in paragraph 11 on the basis that all Defendants conspired to deprive Plaintiff of his commission. Plaintiff also concedes that he has no knowledge of any facts to support his allegation in paragraph 11 of the SAC that Defendants engaged in a conspiracy of any sort. (Ex. 7, Req. No. 7.)

Defendants argue that they wanted the transaction with the Potential Buyers to go through were all disappointed when the sale was cancelled. (S. Hammel Decl., ¶ 11; L. Senavsky Decl., ¶ 6; S. Senavsky

Decl., ¶ 6.) More than a year after the Listing Agreement was cancelled, they and Hammel made the decision to disburse the Properties to themselves, individually. (S. Hammel Decl., ¶ 12; L. Senavsky Decl., ¶ 8; S. Senavsky Decl., ¶ 7.) Defendants posit that this decision had nothing to do with Malm or the Listing Agreement.

Plaintiff provides evidence that on December 28, 2021, Stephen Senavsky sent an email to Hammel confirming a September 2021 meeting stating: "The last item of discussion from the meeting was deeding the Hill House property to Mark, Buff and I ... which you indicated could happen after Drew was out of the picture. You said you saw this possibly happening in spring of 2022." Stephen also noted in regard to the sale of the property that: "We didn't like the deal to begin with." (AUMF 38; Ex. M to AOE [Luboff Depo, Vol. 2, 155:4-13 & 159:25- 160:3], McReynolds Dec., ¶ 7, Ex. K to AOE [Stephen Depo, 86:16-21 (Authenticating Deposition Exhibit 35, the December 28, 2021, Stephen email to beneficiaries confirming their agreements and conversation with Hammel)].)

This evidence does present a dispute of material of fact of whether the Defendants' motives were to try to cancel the transaction due to sense of what Defendants' may have perceived as unfavorable contract terms in the Listing Agreement. In sum, Plaintiff has produced evidence that would allow a reasonable trier of fact to conclude that Defendants may have conspired together to cancel the transaction to avoid having to pay Plaintiff according to the Listing Agreement.

3) Transferring the Property to the Beneficiary Defendants

Pursuant to Section 3(A)(2) of the Listing Agreement, commission is due if "Seller enters into a contract to sell, convey, lease or otherwise transfer the Properties to anyone ("Prospective Buyer") or that person's related entity: (i) who physically entered and was shown the Properties during the Listing Period or any extension by Broker or a cooperating broker; or (ii) for whom Broker or any cooperating broker submitted to Seller a signed, written offer to acquire, lease, exchange or obtain an option on the Properties....." (Ex. 1, Sec. 3(A)(2) (emphasis added).) Defendants Luboff, Steve and Mark were not shown the Properties by any broker during the Listing Period. (UMF No. 19.) Defendants Luboff, Steve and Mark did not submit to Hammel an offer to acquire, lease, exchange or obtain an option on the Properties during the Listing Period. (UMF No. 20.)

In sum, Defendants did not breach the Listing Agreement even if the transfer to the Beneficiary Defendants took place within the 365-day window following the expiration of the Listing Agreement because the transpired events did not breach the terms set forth in Section 3(A)(2) of the Listing Agreement. This theory fails.

a. Conspiring to Transfer Properties to Beneficiaries More Than 365 Days After Cancellation of Listing Agreement to Avoid Payment of Commission

"An independent civil wrong is required for the claim of civil conspiracy, the elements of which "are (1) formation and operation of the conspiracy and (2) damage resulting to plaintiff (3) from a wrongful act done in furtherance of the common design." (*Mendoza v. Continental Sales Co.* (2006) 140 Cal.App.4th 1395, 1406, fn. 7.)

As explained in the section above, the actions complained of in the SAC if made within the 365-day post expiration window of the Listing Agreement would not give rise to a breach of contract. Thus, there were be no independent civil wrong which is required for a conspiracy.

Intentional Interference with Contractual Relationship

In order to prevail on a cause of action for Intentional Interference with Contractual Relations, Plaintiff must allege the following: (1) the existence of a valid contract between the plaintiff and a

third party; (2) the defendant's knowledge of that contract; (3) the defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damages. (*Reeves v. Hanlon* (2004) 33 Cal. 4th 1140.)

The sixth cause of action for intentional interference with contractual relationship is solely concerned with Defendant Luboff's appearing unannounced at the Buyers' property. (Ex. 10, SAC ¶¶ 45-52.)

Separate Statement number 23 reads, "Luboff did not intend to interfere with the Purchase Agreement or Listing Agreement." Plaintiff responded that it is undisputed and immaterial. Because Plaintiff does not dispute that Defendant Luboff did not intentionally interfere with the Purchase or Listing Agreement, Defendant has successfully disproven the intent element and disposed of this cause of action.

Voidable Transfer (Civil Code § 3439.04)

A transfer of assets made by a debtor is fraudulent as to a creditor, whether the creditor's claim arose before or after the transfer, if the debtor made the transfer (1) with an actual intent to hinder, delay or defraud any creditor, or (2) without receiving reasonably equivalent value in return, and either ... (a) was insolvent at the time of the transfer, or (b) became insolvent as a result of the transfer. (*Cortez v. Vogt* (1997) 52 Cal.App.4th 917, 928.)

The seventh cause of action for voidable transfer is solely based on the transfers from the Trust to the Beneficiary Defendants then from the Beneficiary Defendants to Hill House LLC. (Ex. 10, SAC ¶¶ 53-56.)

As explained above, Plaintiff is not a creditor and Defendants are not debtors in this situation because the transpired events Plaintiff complains of does not amount to a breach the terms set forth in Section 3(A)(2) of the Listing Agreement. (See section 3.)

Alter Ego Theory

Plaintiff Malm alleges generally that all Defendants were the alter egos of one another and that the Beneficiaries only are the alter egos of the LLC. (Ex. 10, SAC ¶¶ 13-14.) The Court declines to rule on this issue because this issue is moot since the only surviving claim is the first cause of action for breach of contract against Defendant Hammel. The alter ego theory is inapplicable to the sole remaining breach of contract cause of action.

Conclusion

For the reasons stated above, Plaintiff's MSJ is denied. Motion for summary adjudication is denied as to the breach of contract claim and the declaratory relief claim.

Evidentiary Objections

The Court need only rule on those objections to evidence that are material to the disposition of the MSJ. (See CCP § 437c(q).)

Plaintiff's Objections

OBJ 3: Luboff Decl. ¶ 3. **Sustained.**

OBJ 4: Stephen Decl. ¶ 3. **Sustained.**

OBJ 20: McDonald Decl. ¶ 3. **Sustained.**

OBJ 21: McDonald Decl. ¶ 4. **Sustained.**

7. 9:00 AM CASE NUMBER: C24-00106

CASE NAME: YEKATERINA RAMIREZ VS. THE SPEECH PATHOLOGY GROUP, INC.

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT**

FILED BY: RAMIREZ, YEKATERINA

TENTATIVE RULING:

Summary

On December 22, 2025, Plaintiff Yekaterina Ramirez ("Plaintiff"), filed a motion for preliminary approval of the proposed class action settlement with Defendant The Speech Pathology Group, Inc. ("Defendant"), (Plaintiff and Defendant are collectively hereinafter referred to as "the Parties").

The Court **grants** this Motion for Preliminary Approval of the Class Action Settlement as set forth herein. No appearance is required at the hearing on May 13, 2026.

Background and Settlement Terms

This case is a proposed employee wage and hour class action case. On January 16, 2024, Plaintiff commenced this litigation by filing a class complaint alleging causes of action against Defendant for: 1) Failure to pay wages for all hours worked as minimum wage in violation of Labor Code Sections 1194 and 1197; 2) Failure to pay overtime wages for daily overtime worked in violation of Labor Code Sections 510 and 1194; 3) Failure to authorize or permit meal periods in violation of Labor Code Sections 512 and 226.7; 4) Failure to Authorize or permit rest periods in violation of Labor Code Section 226.7; 5) Failure to provide complete and accurate wage statements in violation of Labor Code Section 226; 6) Failure to timely pay all earned wages and final paychecks due at time of separation of employment in violation of Labor Code Sections 201, 202 and 203; and 7) Unfair business practices in violation of Business and Professions Code Sections 17200, et. Seq. (See Sloane Dec. ¶4.)

According to Plaintiff's Motion, the named Plaintiff worked as hourly-paid, non-exempt employees of Defendant and seek to represent approximately 1501 current and former hourly, non-exempt employee who worked for Defendant in California during the Class Period (hereinafter "Class" or "Class Members"). "Class Period" means the period from January 16, 2020, through the earliest of (i) 60 days from the Mediation Date (July 27, 2025) or (ii) the date the Court enters an order preliminarily approving the settlement proposal.

Pursuant to Labor Code section 2699.3, subd. (a), Plaintiff gave timely written notice to Defendant and the LWDA by sending the PAGA Notice on January 16, 2024. (Sloane Dec. ¶5.) On March 25, 2024, Plaintiff filed a Private Attorneys General Act of 2004 ("PAGA") complaint alleging a cause of action for Civil Penalties pursuant to PAGA, Labor Code Sections 2698, et. seq. (Sloane Dec. ¶6.) On December 9, 2025, Plaintiff filed a First Amended Complaint adding alleged cause of action against Defendant for Civil Penalties Pursuant to The Private Attorneys General Act of 2004 ("PAGA"), Labor Code Sections 2698, et. Seq. (Sloane Dec. ¶7.)

Defendant has at all times denied the claims. Defendant contends that Plaintiff would not likely prevail on their claims. Defendant denies the allegations in the operative complaint, denies any failure to comply with the laws identified in the operative complaint, and denies any and all liability for the causes of action alleged. (Settlement, ¶2.1) Defendant contends that it complied in good faith with wage and hour laws and has dealt legally and fairly with Plaintiff and putative class members. (Sloane Dec. ¶9.)

Plaintiff seek entry of a proposed order granting preliminary approval of the class settlement which: (1) preliminarily approves the proposed settlement of the class action; (2) approves the form and method for providing notice and directs that notice be given to members of the settlement class; (3) preliminarily certifies the settlement class for settlement purpose; and (4) schedules a final approval hearing date.

As consideration for this Settlement, Defendant shall pay a sum equal to One Million Eight Hundred Seventy-Five and Zero Cents (\$1,875,000.00) (the “Gross Settlement Amount”) to fund the non-reversionary, no claims made settlement of this class action. (¶1.24 of the Class Action Settlement Agreement and Class Notice (“Settlement” or “Settlement Agreement”) a copy of which is attached as Exhibit “1” to Declaration of Stephen M. Sloane (“Sloane Dec.”) filed herewith. Gross Settlement Amount is inclusive of Individual Class Payments, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, Class Representative Service Payments, and the Administration Expenses Payment. (Id.)

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Class Counsel seeks attorneys’ fees and costs award of one-third of the Gross Settlement Amount or

Six Hundred Twenty-Four Thousand Nine Hundred Ninety Nine Dollars and Ninety-Nine Cents (\$624,999.99) and Class Counsel's costs not to exceed Thirty-Five Thousand Dollars and Zero Cents (\$35,000.00), for the time spent litigating this matter as well as expenses incurred in the prosecution of the action thus far. The one-third of the total settlement amount as fees is based on the reliance of the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$9,000 the class representative will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Pursuant to Code of Civil Procedure section 382.4, where a settlement proceed can be paid to a non-party to the action, "an attorney for a party to the action shall, in connection with the hearing for preliminary approval pursuant to subdivision (c) of Rule 3.769 of the California Rules of Court, notify the court if the attorney has a connection to or a relationship with a nonparty recipient of the distribution that could reasonably create the appearance of impropriety as between the selection of the recipient of the money or things of value and interests of the class."

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The Court **grants** this Motion for Preliminary Approval of the Class Action Settlement, and will execute the proposed order lodged on December 22, 2025. The Clerk of the Court is requested to schedule hearing date for the motion for final approval.

Other dates in the proposed order shall be adopted. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without a hearing on the compliance statement. No appearance is required at the hearing on May 13, 2026.

8. 9:00 AM CASE NUMBER: C24-03039
CASE NAME: MELANIE ROSE VS. FIRST WALNUT CREEK MUTUAL
*HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Defendant Golden Rain Foundation Of Walnut Creek Db a Rossmoor Walnut Creek's (hereafter "Defendant" or "GRF") Motion to Strike Punitive Damages. The Motion to Strike relates to Plaintiff's First Amended Complaint (FAC) for three housing discrimination related causes of action. Defendant requests to strike paragraphs 1, 42, 56, and paragraph 5 in the prayer for damages.

For the following reasons, the **Motion to Strike is granted in part and denied in part. The Motion to Strike is granted as paragraph 56 and denied as paragraphs 1, 42, and prayer for damages ¶ 5.**

Meet and Confer Requirement

Defendant First Walnut Creek Mutual satisfied their meet and confer requirement by detailing their efforts with Plaintiff in the Declaration of Mark J. Mulkerin. (Decl. of Mulkerin ¶ 2.) Defendant has satisfied its meet and confer requirement. (Code Civ. Proc. § 435.5)

Request for Judicial Notice

The Court declines to rule on Defendant's requests for judicial notice. "Only relevant material is a proper subject of judicial notice, even where the Evidence Code provides in mandatory terms that matters be judicially noticed." (*Hayward Area Planning Assn. v. City of Hayward* (2005) 128 Cal.App.4th 176, 182 citing *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063.)

Procedural History

On September 12, 2025, Plaintiff filed the initial action against GRF and an amended complaint on November 14, 2025 ("FAC"). GRF answered on January 14, 2026, and then filed its general motion to strike punitive damages on the following day, January 15, 2026, which is scheduled to be heard on May 13, 2026. On January 26, 2026, this Court, sua sponte, consolidated the GRF action with a related case, Rose vs. First Walnut Creek Mutual (C24- 03039). On March 13, 2026, Plaintiff filed a motion for reconsideration, to be heard on August 26, 2026, respectfully requesting this Court reconsider its sua sponte consolidation order.

Statement of Facts

Plaintiff inherited real property from her mother when she passed away. This real property has attached to it a non-severable, mandatory membership in the Golden Rain Foundation of Walnut Creek. (FAC ¶ 21.) As a condition of membership, in addition to monthly assessments, GRF charges a one-time Membership Transfer Fee (MTF). (FAC ¶ 20, GRF Ans. ¶ 20.)

In December 2022, Plaintiff was denied this MTF exemption, even though the MTF was already paid by her mother, because she inherited her membership from a parent and not from a spouse, which Plaintiff argues is discriminatory. (FAC ¶¶ 24, 25, 47.) Plaintiff expresses her position that this lawsuit was brought to challenge the discriminatory circumstances in which GRF does not charge a MTF. Specifically, GRF's Inheritance Exemption, Corporate Policy 102.1.4 section C3 ("Policy"), provides an

exemption to the MTF but it is “limited to circumstances in which title is transferred to a spouse or registered domestic partner”. (FAC ¶ 25, GRF Ans. ¶ 25.)

Legal Standard

A court’s determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on “extrinsic evidence showing that the allegations are ‘false’ or ‘sham.’ Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable.” (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).) Scandalous allegations can be properly stricken. (*Bartling v. Glendale Adventist Medical Center* (1986) 184 Cal.App.3d 961, 970.) Moreover, matters which are not essential or relevant to any statement or claim for relief should also be stricken. (C.C.P. § 431.10(b)(1), (2).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Rule of Court Rule 3.1322(a)

“A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (CRC, Rule 3.1322 (a).)

Since Defendant did not quote specific portions of any paragraphs but listed four specific paragraphs, the Court will construe Defendant’s request as to strike all four listed paragraphs in their entirety.

Statutory Treble Damages Under Civil Code 52

The treble damages plead in FAC ¶ 42 are independent of the damages framework provided in Civil Code section 3294.

Paragraph 42 of the FAC refers to the statutory treble damages provided by Civil Code section 52. Unruh Act Treble Damages are a part of a mandatory statutory remedy scheme which provides a minimum damage award of \$4,000.00 and a maximum award of treble damages proven for offense of Civil Code sections 51, 51.5, or 51.6. (Civ. Code § 52(a).) Plaintiff alleges a Civil Code section 51 violation. (FAC ¶ 34-37.)

As the Ninth Circuit has explained, "proof of actual damages is not a prerequisite to recovery of statutory minimum damages." (*Botosan v. Paul McNally Realty* (9th Cir. 2000) 216 F.3d 827, 835; see also *Koire v. Metro Car Wash*, 40 Cal. 3d 24, 33 [Unruh Act "provides for [statutory] damages aside from any actual damages incurred by the plaintiff."].) To maintain an action for statutory minimum damages, plaintiff must establish that they were denied full and equal access on a particular occasion. (Id. citing *Donald v. Cafe Royale, Inc.* (1990) 218 Cal.App.3d 168, 183.)

Here, Plaintiff only needs to show she was denied full and equal access from services. At the pleading stage Plaintiff pled that Defendant maintained a policy where she was denied full and equal access to an inheritance exemption for spouses when Plaintiff applied for it after her mother passed away. (FAC ¶¶ 19, 24-28.)

The Motion to strike FAC ¶ 42 is denied.

Punitive Damages Pursuant to Civil Code section 3294

The standards for alleging the right to punitive damages are set forth in Civil Code section 3294 and the case law construing it, which require more than mere conclusory allegations of willful, malicious, or oppressive conduct. Under Civil Code section 3294, punitive damages may be awarded in "an action for the breach of an obligation not arising from contract" where Plaintiff proves the "defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" is defined as conduct "intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1) [emphasis added].)

Civil Code section 3294 was amended in 1987 to add the requirement that conduct be "despicable" to support an award of punitive damages based on malice or oppression, unless the complaint alleges an intent to injure the plaintiff. (See *Lackner v. North* (2006) 135 Cal.App.4th 1188, 1211; Stats.1987, c. 1498, § 5, p. 5780.) The California Supreme Court explained:

[T]he statute's reference to "despicable" conduct seems to represent a new substantive limitation on punitive damage awards. Used in its ordinary sense, the adjective "despicable" is a powerful term that refers to circumstances that are "base," "vile," or "contemptible." (4 Oxford English Dict. (2d ed. 1989) p. 529.) As amended to include this word, the statute plainly indicates that absent an intent to injure the plaintiff, "malice" requires more than a "willful and conscious" disregard of the plaintiffs' interests. The additional component of "despicable conduct" must be found.

(*College Hospital Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) (See also *Lackner v. North*, *supra*, 135 Cal.App.4th at 1209 ["The adjective 'despicable' connotes conduct that is ' . . . so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.' [Citations, internal quotations omitted.]"].)

"Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances [set forth in Civil Code section 3294.] . . . [Citations omitted; emphasis added.]" (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 163-164.) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for punitive damages: "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [emphasis added, citing *G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29].) Conclusory allegations parroting the language of the statute are not enough for a punitive damages claim to

survive a motion to strike. (*Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 963 ["Pleading in the language of the statute is acceptable provided that sufficient facts are pleaded to support the allegations. [Citation omitted; emphasis added.] The terms themselves are conclusory, however." (Emphasis added.)) (See also *Lackner v. North, supra*, 135 Cal. App. 4th at 1210 ["Punitive damages are proper only when the tortious conduct rises to levels of extreme indifference to the plaintiff's rights, a level which decent citizens should not have to tolerate" (Emphasis added.)])

The FAC mentions punitive damages twice. Once in the prayer for relief section at the end of the FAC and once in paragraph 56 as an allegation for Plaintiff's second cause of action for Violation of FEHA. (FAC ¶56 and prayer for relief ¶ 5.)

The Court will allow the exemplary, treble and punitive damages allegation in FAC ¶ 1 and prayer for relief ¶ 5 since it encompasses the mandatory statutory damages provided by Civil Code section 52 subsection a as explained above.

FAC ¶ 56 is a threadbare conclusory allegation that is simply parroting the language of the statute. This is simply not enough for this punitive damages claim to survive a motion to strike. (See FAC ¶¶ 44-56.)

Conclusion

For the reasons analyzed above, the **Motion to Strike is granted in part and denied in part. The Motion to Strike is granted as paragraph 56 and denied as paragraphs 1, 42, and prayer for damages ¶ 5.**

9. 9:00 AM CASE NUMBER: C24-03057

CASE NAME: SIOUX EWY VS. CITY OF WALNUT CREEK

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF WALNUT CREEK

TENTATIVE RULING:

Summary

On January 16, 2026, Defendant City of Walnut Creek's ("City") filed a Demurrer to Plaintiff Sioux Ewy's ("Plaintiff") complaint. In reviewing the moving papers and the Declaration of Counsel Diana S. Godwin, the Court finds that the City complied with the statutory requirement to meet and confer pursuant to Cal. Code of Civ. Proc § 430.41. The Court further finds that no timely opposition was filed and served by Plaintiff.

As such, the Demurrer is **sustained without leave to amend**. The Court will execute the proposed order lodged by the City dated January 16, 2026 and will request that the Clerk of the Court attach this tentative ruling to the proposed order. No appearance is required at the hearing on May 13, 2026.

10. 9:00 AM CASE NUMBER: C24-03180
CASE NAME: JESUS SANCHEZ VS. DENNIS RODRIGUEZ
HEARING ON SUMMARY MOTION FILED BY DEFT DENNIS RODRIGUEZ
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Dennis Rodriguez's Motion for Summary Judgment or, in the Alternative, Summary Adjudication. The Complaint alleges three causes of action against Defendant Rodriguez: (1) general negligence, (2) premises liability – negligence, and (3) premises liability – failure to warn [Civil Code section 846].

Defendant's Request for Judicial Notice is granted. (Evid. Code § 452 (d).)

For the following reasons, Defendants' Motion for Summary Judgment is **granted**.

Factual Background

This matter relates to injuries sustained by Plaintiff while performing work at real property owned by Defendant Rodriguez (the "Property"). Mr. Rodriguez hired non-moving Defendant Cornell Roofing Company, Inc. ("Cornell") to perform roofing work on the Property. (UMF 5.) On November 30, 2022, Plaintiff was performing work on the roof of the Property when he slipped and fell. (UMF 1.) At that time, Plaintiff was employed by Cornell and performing roofing work within the scope of his employment with Cornell. (UMF 7.) Cornell held a valid contractor's license. (UMF 6.) Plaintiff does not know what caused him to slip and fall. (UMF 2.)

Defendant Rodriguez was not Plaintiff's employer and had never met him prior to the incident. (UMF 8-10.) Mr. Rodriguez did not control the work Plaintiff was performing, nor did he direct Cornell in its work on the Property. (UMF 12-13.) Mr. Rodriguez was not responsible for Plaintiff's safety while performing work, did not provide tools to Plaintiff, and had no input as to how he performed his work or what safety measures were to be used. (UMF 11, 14-15.)

At the time of the accident, Cornell was directing and supervising Plaintiff's work. (UMF 16.) Plaintiff was being paid by Cornell for his work. (UMF 17.) Following the incident, Plaintiff filed a workers' compensation case. (UMF 18.)

Standard

Summary judgment is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) The "moving papers must demonstrate that 'material facts' are undisputed and that the movant is entitled to judgment as a matter of law. (*Id.* at (b)(1), (c).) "The moving party's papers are strictly construed whereas those of the opposing party are liberally construed, with all doubts about the granting of the motion resolved in favor of the opposing party." (*Y.K.A. Industries, Inc. v. Redevelopment Agency of City of San Jose* (2009) 174 Cal.App.4th 339, 352.)

The moving party "bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a

shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (*Id.* at 353 quoting *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850, italics in original.) Thus, a defendant moving for summary judgment “must make a prima facie showing, i.e., ‘he must present evidence that would require a reasonable trier of fact *not* to find any underlying material fact more likely than not—otherwise, *he* would not be entitled to judgment *as a matter of law*, but would have to present *his* evidence to a trier of fact.” (*Ibid.* quoting *Aguilar*, supra, 174 Cal.App.4th at 851.)

Analysis

As noted above, the Complaint asserts three causes of action against Defendant Rodriguez: (1) general negligence, (2) premises liability – negligence, and (3) premises liability – failure to warn [Civil Code section 846]. Defendant contends both negligence causes of action are barred by the so-call “Privette Doctrine.” It also contends the failure to warn cause of action fails under the facts of this case.

A. The Privette Doctrine Generally

In the context of premises liability and negligence claims by an employee of an independent contractor hired by an owner of the premises or general contractor on a development project, the *Privette* doctrine, set forth in *Privette v. Superior Court* (1993) 5 Cal.4th 689, 693, creates a presumption against imposing liability on the owner or general contractor for injuries to the independent contractor’s employee. (*Sandoval v. Qualcomm Incorporated* (2021) 12 Cal.5th 256, 264.) Under the *Privette* doctrine: “A person or entity hiring an independent contractor (a ‘hirer’) ordinarily delegates to that independent contractor all responsibility for the safety of the contractor’s workers.” (*Ibid.*) A hirer for purposes of the *Privette* doctrine includes a landowner. (*Toland v. Sunland Housing Group, Inc.* (1998) 18 Cal. 4th 253, 269–270 [hirer under *Privette* can be a landowner, general contractor, or any other entity that hires an independent contractor].)

The California Supreme Court later expounded on the doctrine in *SeaBright Ins. Co. v. US Airways, Inc.* (2011) 52 Cal.4th 590: “By hiring an independent contractor, the hirer implicitly delegates to the contractor any tort law duty it owes *to the contractor’s employees* to ensure the safety of the specific workplace that is the subject of the contract.” (*Id.* at 594 [italics in original.]) As the Court stated in *Sandoval*: “Over time, we’ve recast our primary rationale for the *Privette* doctrine in terms of delegation rather than workers’ compensation. Because we typically expect contractors to perform the contracted work more safely than hirers, we have endorsed a ‘strong policy’ of presuming that a hirer delegates all control over the contracted work, and with it all concomitant tort duties, by entrusting work to a contractor. [Citation omitted.]” (*Sandoval*, supra, 12 Cal.5th at 270.)

Here, Cornell was hired by Rodriguez to perform roofing work at his Property. Cornell was a licensed contractor that employed Plaintiff and paid him for his work. Plaintiff’s injuries arose while he was performing work for, and working within the course and scope of his employment with, Cornell.

Accordingly, Plaintiff’s claims fall within the so-called *Privette* Doctrine and are presumptively barred unless Plaintiff can show they fall within an exception to the *Privette* Doctrine.

B. Exceptions to the Privette Doctrine

"[T]he *Privette* doctrine has its limits. Sometimes a hirer intends to delegate its responsibilities to the contractor in principle but, by withholding critical safety information, fails to effectively delegate its responsibilities in practice; or a hirer delegates its responsibilities only partially by retaining control of certain activities directly related to the contracted work." (*Sandoval*, supra, 12 Cal.5th at 271.) In those circumstances, the *Privette* presumption "gives way to the two recognized exceptions that apply where delegation is either ineffective or incomplete." (*Ibid.*) One exception is set forth in *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and arises based on the hirer's "retained control," and the other in *Kinsman v. Unocal Corp.* (2005) 37 Cal.4th 659 applies to a landowner-hirer when there is a concealed dangerous condition on the property. (*Ibid.*)

1. The *Hooker/McKown* Exception

The cases *Hooker v. Dept. of Transportation* (2002) 27 Cal.4th 198 and *McKown v. Wal-Mart, Inc.* (2002) 27 Cal.4th 219 were decided essentially as companion cases. (*McKown*, supra, 27 Cal.4th at 222.) The Court in *McKown* summarized the holdings of the two decisions and the extension of the *Hooker* exception to equipment provided by the hirer:

In *Hooker v. Department of Transportation* (2002) 27 Cal. 4th 198 (*Hooker*), a companion to this case, we held that a hirer of an independent contractor is not liable to an employee of the contractor ***merely because the hirer retained control over safety conditions at a worksite***, but that a hirer is liable to an employee of a contractor ***insofar as a hirer's exercise of retained control affirmatively contributed to the employee's injuries***. In this case, we hold that a hirer is liable to an employee of an independent contractor insofar as ***the hirer's provision of unsafe equipment affirmatively contributes to the employee's injury***.

(*Id.* at 222 emphasis added.)

To meet the *Hooker/McKown* exception, Plaintiff must put forth evidence that Rodriguez retained control and its retained control affirmatively contributed to his injuries. (*Sandoval*, supra, 12 Cal.5th at 278.) "A hirer's mere authority to prevent or correct a contractor's unsafe practices (retained control) does not, without more, limit the contractor's delegated control over the work. But to the extent that the hirer exerts influence over the contracted work such that the contractor is not entirely free to perform the work in the contractor's own manner (actual exercise), the hirer does limit the contractor's delegated control." (*Ibid.*) The Court in *Sandoval* explained that "retained control" under the *Hooker* exception is not general control over the property or project but means that the hirer "retains a sufficient degree of authority over the manner of performance of the work entrusted to the contractor. (Emphasis added.)" (*Id.* at 274-276 [citing authorities rejecting general control over the premises as retained control to support hirer liability to employees of subcontractors].)

Actual exercise of the retained control "requires that the hirer in fact 'involve itself, such as through direction, participation, or induced reliance. [Citation omitted.]" (*Sandoval*, supra, 12 Cal.5th at 276.) "[T]he affirmative contribution requirement can be satisfied ***only if*** the hirer in some respect induced – not just failed to prevent – the contractor's injury-causing conduct." (*Id.* at 277 citing examples.) Active participation is sufficient but "is not necessarily the only way" this requirement can be met. (*Id.*

at 276, fn. 6.) The Court also explained that “neither ‘actual exercise’ nor ‘affirmative contribution’ requires that the hirer’s *negligence* (if any) consist of an affirmative act.” (*Id.* at 277.) The theory underlying the *Hooker* exception is that the delegation of tort duties to the independent contractor is “partial” or “incomplete” because the hirer retains control over some aspect of the work. (*Id.* at 271.)

Plaintiff was injured when he slipped and fell while performing roofing work at the Property. There is no evidence that Mr. Rodriguez contributed to Plaintiff’s injuries. It is undisputed that Cornell was supervising and directing Plaintiff’s work at the time of the incident. Mr. Rodriguez did not have any control over the safety measures Cornell implemented. Nor did Mr. Rodriguez retain control over Plaintiff’s work, provide him tools, or even meet Plaintiff prior to the incident. In other words, there is no evidence that Mr. Rodriguez ‘retained control over safety conditions at the worksite,’ much less that any actions by Mr. Rodriguez “affirmatively contributed to” Plaintiff’s injuries.

Plaintiff has failed to provide any evidence that this exception to the *Privette* Doctrine applied.

2. The Kinsman Exception

Under the *Kinsman* exception which applies when the hirer is also the landowner, the landowner-hirer may owe tort duties to the employee of a subcontractor if the owner-hirer fails to disclose to the contractor a concealed hazard on the property. (*Sandoval, supra*, 12 Cal.5th at 271-272.) Under the *Kinsman* exception, “a landowner who hires an independent contractor may be liable if the landowner knew, or should have known, of a concealed hazard on the property that the contractor did not know of and could not have reasonably discovered, and the landowner failed to warn the contractor of the hazard.” (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 38 [citing *Kinsman, supra*, 37 Cal.4th at 664].)

For purposes of *Kinsman*, a “concealed hazard” can be one where the existence of the hazard is concealed, or where the hazard “is in some way apparent but whose dangerousness is concealed. [Citation omitted.]” (*Sandoval, supra*, 12 Cal.5th at 272.) The concealed hazard under the *Kinsman* exception must be “a hazard that the hirer either knows or reasonably should know exists, and that the contractor does not know exists and could not reasonably discover without the hirer’s disclosure. [Citation omitted.]” (*Ibid.*) As the Court recently explained its holding in *Kinsman*: “We based our holding on the premises liability rule that a landowner has a duty to warn a visitor of a dangerous condition on the property ‘[s]o that [the visitor], like the host, will be in a position to take special precautions when [the visitor] comes in contact with it.’” [Citations, internal quotation marks omitted.]” (*Gonzalez, supra*, 12 Cal.5th at 43.)

Initially, it is worth noting that there are no allegations in the complaint that a concealed hazard existed on the Property and that such a hazard caused and or contributed to Plaintiff’s injuries. “It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion.” (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.) Summary [adjudication] cannot be granted nor denied on a ground not raised by the pleadings. (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663.)

In addition, there is no evidence to support a finding that there was a concealed hazard that Defendant was aware of and did not disclose. Plaintiff admits that he does not know what caused him to slip and fall. (UMF 2.) Without knowing the cause, Plaintiff has failed to provide evidence that can

establish that (1) there was some hazard on the roof that (2) Defendant was aware of and (3) Plaintiff could not have reasonably discovered, and (4) Defendant failed to disclose.

Plaintiff has failed to provide any evidence that this exception to the *Privette* Doctrine applied.

The above analysis applies to Plaintiff's general negligence and premises liability – negligence causes of action.

C. Willful Failure to Warn – Civil Code § 846

Plaintiff's Complaint also includes a claim under Civil Code section 846, which states, in pertinent part:

"An owner of any estate or any other interest in real property, whether possessory or nonpossessory, owes no duty of care to keep the premises safe for entry or use by others **for any recreational purpose** or to give any warning of hazardous conditions, uses of, structures, or activities on those premises to persons entering **for a recreational purpose**, except as provided in this section." (Civ. Code § 846 (a) emphasis added.)

This statute does not apply to claims by a person that was hired to perform work on a person's property or structures located thereon. The allegations of the Complaint are clear that Plaintiff was not on the Property for 'recreational purposes,' but instead as part of his job working for Cornell. Plaintiff also fails to provide any evidence to support this cause of action.

Evidentiary Issues

Plaintiff's Objections 1-5: Overruled.

Conclusion

Based on the above, Defendant's Motion for Summary Judgment is **granted**.

11. 9:00 AM CASE NUMBER: C25-00790
CASE NAME: ANGEL VILLAFAN VS. ONPOINT INDUSTRIAL SERVICES, LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JASON D. FRIEDMAN
FILED BY: ONPOINT INDUSTRIAL SERVICES, LLC

TENTATIVE RULING:

Summary

Defendant Onpoint Industrial Services, LLC ("Defendant") filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice* filed by Jason D. Friedman, Esq. The Motion is **granted**. No appearance is required on May 13, 2026.

Background

On November 14, 2025, Defendant filed Notice of Hearing, through Counsel Constangy Brooks, Et. Al., and the Verified Application for Admission of Jason D. Friedman to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Jason D. Friedman, and the Declaration of Counsel Kenneth D. Sulzer. The Proof of Service shows that service was accomplished via electronic service on November 14, 2025. The Court did not receive timely oppositions to this

Motion.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Jason D. Friedman. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Friedman is an attorney licensed to practice in the State of Virginia and Federal District Courts of Maryland, the District of Columbia and Virginia. He is employed by Constangy Brooks Smith & Prophete, LLP. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. Again, no timely opposition was filed with the Court.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders. The Court finds good cause to admit Mr. Friedman *pro hac vice* to practice before the Courts of the State of California for this action.

Ruling

Defendant's motion is **granted**. Jason D. Friedman, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order granting Verified Application of Pat Lundvall to appear as Counsel *Pro Hac Vice* lodged with the Court on November 14, 2025, with a copy of this ruling attached thereto. No appearance is required on May 13, 2026.

12. 9:00 AM CASE NUMBER: C25-00869
CASE NAME: ELLA SPASSOVA VS. KINSHASA HUNTER
***HEARING ON MINOR'S COMPROMISE RE: ELLA ROSE SPASSOVA**
FILED BY: SPASSOVA, ELLA ROSE

TENTATIVE RULING:

Summary

Petitioner Cherry Rose Spassova's Petition for Approval of Compromise of Ella Rose Spassova's ("Minor") Claim filed on January 23, 2026, is **granted**, as set forth below. No appearance is required at the May 13, 2026 hearing.

Background

On January 23, 2026, Petitioner Cherry Rose Spassova's, parent and guardian *ad litem* for her child, Ella Rose Spassova (DOB 2/1/2024), filed the Petition through counsel Michael D. Herman, to compromise the claim that Minor had against Kinshasa Hunter, Barbara Brooks, Pauletta Borroughs related to an accident that occurred on August 22, 2024 in Antioch, CA. In that accident, Minor sustained injuries including to her right leg, along with emotional trauma. Petitioner represents that

Minor has received treatment and has fully recovered and there are no permanent injuries.

The Defendants collectively offered settlement in the amount of \$100,000, of which \$ 64,555.00 is to be paid to Minor through a structured annuity. The deduction of \$ 35,445.00 represents a negotiated deduction from the settlement used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to invest the settlement proceeds into a single premium deferred annuity for the benefit of the Minor which will yield \$118,480.96 when she turns 28.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged with the Court on January 23, 2026. No appearance is required at the May 13, 2026 hearing.

13. 9:00 AM CASE NUMBER: C25-01923

CASE NAME: AIDEN RIOS VS. BROOKE KEMPER

***HEARING ON MINOR'S COMPROMISE RE: AIDEN RIOS**

FILED BY: RIOS, AIDEN

TENTATIVE RULING:

Summary

Petitioner Adolfo Rios filed a Petition for Approval of Compromise of Minor Aiden Rios' ("Minor") filed on January 13, 2026 is **granted**, as set forth below. No appearance is required on May 13, 2026.

Background

Petitioner Adolfo Rios filed a Petition for Approval of Compromise of Minor Aiden Rios (DOB 5/29/2011) ("Minor") through counsel Clancy & Diaz, to compromise the claim that Minor had against Brooke Kemper related to an accident that occurred on March 23, 2023 in Walnut Creek, CA. In that accident, Minor sustained injuries including a concussion, headaches, generalized anxiety, and PTSD symptomatology. Petitioner represents that Minor has received treatment but has not fully recovered. Minor continues to experience post-concussive symptoms. The Defendant and an uninsured motorist policy offered settlement in the amount of \$225,000, of which \$ 147,640.78 is to be paid to Petitioner through a structured annuity. The deduction of \$77,359.22 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees incurred. Petitioner prepared a proposed order to invest the settlement proceeds into a single premium deferred annuity for the benefit of the Minor which will yield \$164,756.70 in a guaranteed lump sum payment on May 29, 2029

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim lodged on January 13, 2026. No appearance is required at the hearing on May 13, 2026.

14. 9:00 AM CASE NUMBER: C25-03757

CASE NAME: CATHAY BANK, VS. CHRISTINA SEELYE

HEARING IN RE: APPLICATION FOR RIGHT TO ATTACH ORDER, ISSUANCE OF WRIT AFTER HEARING AS TO CHRISTINA SEELYE

FILED BY: CATHAY BANK,

TENTATIVE RULING:

The hearing is **continued** to May 27, 2026, the earliest available date on the Court's calendar, because the Bank's reply, due two court days before the hearing under CCP § 484.060(c), was not received in time for the Court's review.

15. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO ROBERT KEITH MORGAN

FILED BY: PARAQUAT CASES

TENTATIVE RULING:

Summary

On November 17, 2025, Plaintiff William DeHaven filed a Notice of Hearing through Counsel, The Miller Firm, LLC, to this Court for an order granting this Verified Application of Robert Keith Morgan for Admission *Pro Hac Vice* as Counsel for Plaintiff. The Motion is **granted**. No appearance is required at the hearing on May 13, 2026.

Background

On November 17, 2025, Plaintiff William DeHaven filed a Notice of Hearing through Counsel, The Miller Firm, LLC, to this Court for an order granting this Verified Application of Robert Keith Morgan for Admission *Pro Hac Vice* as Counsel for Plaintiff ("Motion"). The Motion was supported by the Verified Application of Robert Keith Morgan, and the Declaration of Counsel Curtis G. Hoke. The proof of service form indicates that service of this Motion was accomplished to the service list on November 17, 2025. The Court did not receive timely oppositions to this Motion.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Robert Keith Morgan. declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Morgan is an attorney licensed to practice in the State of Mississippi, the State of West Virginia, and the District of Columbia, and is a resident of the State of Mississippi. He is employed by the Miller Firm, LLC. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have

regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*. Again, no timely opposition was filed with the Court.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders. The Court finds good cause to admit Mr. Morgan pro hac vice to practice before the Courts of the State of California for this action.

Ruling

Defendant's motion is **granted**. Robert Keith Morgan, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case. The Court will execute the proposed order lodged with the Court on November 17, 2025, with a copy of this ruling attached thereto. No appearance is required on May 13, 2026.

16. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: CLIFFORD R. HORNER, ESQ.**

FILED BY: FARRELL, SHANNA M.

TENTATIVE RULING:

Summary

Attorneys Clifford Horner and Paymon Hifai of the Horner Law Group ("HLG") Motion to be Relieved as Counsel of Record for Defendant and Cross-Complainant Shanna Farrell is tentatively **granted**. Messrs. Horner or Paymon and Defendant and Cross-Complainant Shanna Farrell ("Farrell") are ordered to appear at the hearing on May 13, 2026.

Background

As background, the Plaintiffs filed this property dispute action on November 24, 2021 against their neighbors in rural multiple acre ranch in Clayton, California, alleging various causes of action. To date, there are nearly 400 pleadings and documents on file in this case, including multiple demurrers, motions to strike, discovery motions, *ex parte* applications, motions for reconsideration, a motion to declare Farrell as a vexatious litigant, a motion to expunge *lis pendens*, motions for sanctions, a motion to vacate a default judgment, an earlier motion of Farrell's prior counsel to withdraw as counsel of record, and a motion for preliminary injunction. The operative pleading is the Fourth Amended Complaint. In this Court's assessment, to describe this case as one that has been vigorously litigated is a substantial understatement.

Trial is set for September 14, 2026. The case is approaching critical pretrial deadlines, including the Issue Conference set for August 6, 2026, and related statutory and discovery deadlines leading into trial. The five year statute expires on November 24, 2026, after which this Court loses jurisdiction over this case and must dismiss this action pursuant to Cal. Code of Civ. Proc §§ 583.310 and 583.360. There are no stipulations to continue the trial date, no tolling agreements and no statutory cause to extend this five year restriction.

On March 31, 2026, after receiving notice of the Motion to Withdraw, counsel for the Nist Plaintiffs ("Plaintiffs") responded and stated that he will not oppose this application or HLG's underlying Motion, and counsel for Cross-Defendant Primo Facchini stated he does not intend to oppose this *ex-parte* application or HLG's Motion to Withdraw. However, Plaintiffs, upon review of Shanna Farrell's opposition, filed a Reply Brief essentially arguing that dismissal is warranted due to a financial conflict of interest between HLG and Ms. Farrell.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

According to HLG this Motion to Be Relieved as Counsel is made for several reasons: 1) The attorney-client relationship that HLG has with Shanna M. Farrell, Defendant and Cross-Complainant("Client") as well as the trust and confidence between both has fractured beyond repair, amounting to HLG's inability to effectively litigate this case and is a basis for the termination of the attorney-client relationship; 2) The breakdown of the attorney-client relationship now exists which is a ground for allowing attorney to withdraw. *Estate of Falco v. Decker*, 188 CA3d 1004, 1014 (1987). Counsel claims that they can no longer represent client due to irreconcilable differences regarding litigation of this case and breach of retention agreement.

However, both Shanna Farrell and the Nist Plaintiffs filed opposition and reply briefs that paint a critically different and separate legal basis for disqualification.

Farrell characterizes the conflict between her and HLG as a fee dispute that was initiated when she invoked mandatory fee arbitration. In her opposition papers, Farrell argues that HLG should not be permitted to withdraw, as she will lose the ability to maintain a fiduciary duty with counsel regarding her property interests. Interestingly, Farrell also revealed that HLG has maintained what appears to be an attorney fee lien of approximately \$1.2 million on her property, which is the subject of this litigation. To grant HLG's motion at this time would severely prejudice her and would essentially make HLG a secured creditor over the property in dispute. Farrell does not quite understand the import of her disclosure.

But, Plaintiffs focused the attention of the Court on the most critical issue. Plaintiff's opposition claim that the underlying claim core issue is not whether HLG and Defendant can communicate or whether a fee dispute exists. Rather, Plaintiffs claim that that HLG has already become an adverse party to Farrell by virtue of HLG's possession and control of property obtained through representation, HLG's assertion of fees equal to the property's appraised value, and HLG's withholding of that property as leverage in a fee dispute.

Plaintiffs argue that under California law, an attorney cannot simultaneously represent a client and maintain an adverse financial interest in property obtained through that representation. This conflict

is structural, ongoing, and cannot be cured through fee arbitration or continued representation under conditions. As represented in Farrell's facts, HLG holds a deed to the Clayton property obtained through representation of Defendant; has asserted fees of approximately \$1.2 million-an amount equal to the property's appraised value; has tied fee demands to anticipated sale proceeds; and has withheld the deed as leverage in the fee dispute. Assuming these facts are true, they do not demonstrate a communication breakdown but, rather, an irreconcilable conflict of interest under California Rules of Professional Conduct Rule 1.7. As such, HLG's motion to be relieved as counsel must be granted as HLG recognizes their duty to withdraw and as officers of the court have moved to do so. Plaintiffs argue that if this Court denies the motion, Plaintiffs will be compelled to move for disqualification of HLG based on this irreconcilable conflict of interest as to not allow HLG to be relieved would be highly prejudicial to Plaintiffs' interests.

Based on the foregoing arguments, and after reviewing statutory and decisional authorities cited by the parties, along with the Rules of Professional Responsibility, the Court finds that there is good cause to grant this Motion to relieve HLG as counsel for Farrell. The Court acknowledges that the prejudice to Plaintiff is moderate, as there is ample time for Plaintiff to retain trial counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of HLG to be Relieved as Counsel of Record for Farrell. The makes the following orders:

1. HLG's motion is tentatively **granted**.
2. Farrell and HLG is ordered to appear.

17. 9:00 AM CASE NUMBER: N25-1365

CASE NAME: BRIAN SWANSON VS. CITY OF SAN RAMON

***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS OR, IN THE ALTERNATIVE, MOTION TO DISMISS**

FILED BY: CITY OF SAN RAMON

TENTATIVE RULING:

Before the Court is a motion for judgment on the pleadings, or in the alternative, motion to dismiss filed by respondent City of San Ramon. For the reasons set forth, the motion is **granted in part** as to the first and second causes of action of the first amended petition and **denied** as to the third cause of action.

Background

Petitioner Brian Swanson, AIPC, asserts challenges to certain actions by City of San Ramon based on alleged violations of the California Environmental Quality Act, Public Resources Code § 21000, *et seq.* ("CEQA") and the CEQA Guidelines. The actions he challenges were the subject of a Notice of

Determination by the City on June 12, 2025. On July 14, 2025, Plaintiff filed his initial petition for writ of mandate ("Initial Petition") which named as respondents, the mayor of San Ramon, the San Ramon City Council, and the San Ramon Planning Commission, among other entities, but not the City of San Ramon itself.

His operative first amended verified petition for writ of mandate ("FAP") was filed on December 29, 2025. The FAP names the City as the sole named respondent. The City of San Ramon filed a verified answer to the FAP, and on January 28, 2026, the City filed the current motion for judgment on the pleadings, or in the alternative, motion to dismiss based on Petitioner's failure to exhaust his administrative remedies. On December 19, 2025, the City lodged with the Court the Administrative Record ("AR") certified by the City.

Legal Grounds for the City's Motion

In general, the same rules of pleading and practice applicable to civil actions apply in writ proceedings, except as otherwise specifically provided. (Code Civ. Proc. § 1109 ["Except as otherwise provided in this Title, the provisions of Part II of the Code [Code Civ. Proc. §§ 307-923] are applicable to and constitute the rules of practice in the proceedings mentioned in this Title."].) The notice of motion and motion itself does not cite the legal authority on which it is based, but its supporting memorandum relies on two statutes.

Code of Civil Procedure section 1094 provides a specific basis for a party to make a noticed motion for judgment in connection with a writ proceeding: "If a petition for a writ of mandate filed pursuant to Section 1088.5 presents no triable issue of fact or is based solely on an administrative record, the matter may be determined by the court by noticed motion of any party for a judgment on the peremptory writ." The City contends the FAP is "based solely on an administrative record" such that the FAP may be determined on a noticed motion for judgment under Code of Civil Procedure section 1094.

Respondent City also moves to dismiss the FAP in the alternative, citing Code of Civil Procedure section 583.150. That statute provides: "This chapter does not limit or affect the authority of a court to dismiss an action or impose other sanctions under a rule adopted by the court pursuant to Section 575.1 or by the Judicial Council pursuant to statute, or otherwise under inherent authority of the court."

Analysis

A. Motion for "Judgment on the Pleadings" and Code of Civil Procedure Section 1094

Though the motion is titled as a "motion for judgment on the pleadings" (*see also* Not. of Mot. and Mot. p. 2, ll. 2-7), the motion also states that it is brought based on the administrative record on the ground that the administrative record shows Petitioner failed to exhaust his administrative remedies. (Not. Mot and Mot. p. 2, ll. 8-12.) The notice of motion and motion does not identify the legal authority on which the motion was brought.

The supporting memorandum cites Code of Civil Procedure section 1094. A motion for judgment under that statute is not a "motion for judgment on the pleadings" governed by Code of Civil Procedure section 438 or the common law. Such motions for "judgment on the pleadings" are made on grounds similar to a demurrer after an answer is filed and determined under standards applicable

to a demurrer. (See, e.g., *Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439 [statutory motion]; *Smiley v. Citibank (S.D.), N.A.* (1995) 11 Cal.4th 138, 146 [common law motion].)

A motion for judgment under Code of Civil Procedure section 1094 is different. Rather, "[a] motion for judgment under Code of Civil Procedure section 1094 is the proper (and exclusive) procedural means for seeking a streamlined review of an agency's decision. [Citation omitted.]" (*Rasooly v. City of Oakley* (2018) 29 Cal.App.5th 348, 353.) A motion for judgment under Code of Civil Procedure section 1094 by the terms of the statute explicitly allows the Court to analyze the claims made in the petition with consideration of the administrative record where the petition "presents no triable issue of fact or is based solely on an administrative record." (Code Civ. Proc. § 1094 [emphasis added].)

The City also cites in its initial memorandum the decision *Dunn v. County of Santa Barbara* (2006) 135 Cal. App. 4th 1281. There, the petitioner filed a petition for writ of mandate and subsequently made an alternative motion for summary adjudication under Code of Civil Procedure section 437c or motion for judgment under Code of Civil Procedure section 1094. The Court of Appeal agreed with the trial court that where the petition was made under Code of Civil Procedure section 1094.5 on an administrative record, the motion for judgment under Code of Civil Procedure section 1094 was the proper motion. (Id. at 1286 ["Where, as here, an administrative mandamus proceeding purportedly presents no triable issue of fact or is based solely on the administrative record, the proper procedure is a motion for judgment on the writ pursuant to Code of Civil Procedure section 1094."].) There appears to be no dispute between the parties that the petition is one arising under Code of Civil Procedure section 1094.5 and determined based on the administrative record because a hearing was required, evidence was taken and the agency has discretion in the determination of facts. (*No Oil, Inc. v. City of Los Angeles* (1974) 13 Cal.3d 68, at p. 79, fn. 6, disapproved on other grounds as to *dicta* on traditional mandamus in *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal. 4th 559, 576.)

B. Lack of Issue Exhaustion as Ground for Judgment for the City

Exhaustion in the context of a CEQA petition encompasses both exhaustion of administrative remedies, based on the petitioner's pursuit of available administrative review or appeals, and exhaustion by having raised before the administrative body the grounds for violation of CEQA asserted in the petition so that the administrative decisionmakers had the opportunity to address the claimed violations before judicial review is invoked. (See *Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal. App. 4th 577, 588-589, 594 [addressing petitioner's failure to appeal the CEQA issue and only appealing a parking issue in the administrative appeal process, which the Court concluded meant the petitioner had not exhausted its administrative remedies and did not have standing to make a judicial challenge on the CEQA issue]; *Sierra Club v. City of Orange* (2008) 163 Cal. App. 4th 523, 535 [" 'No action or proceeding may be brought pursuant to Section 21167 unless the alleged grounds for noncompliance with this division were presented to the public agency orally or in writing by any person during the public comment period provided by this division or prior to the close of the public hearing on the project before the issuance of the notice of determination.' ([Pub. Res. Code] § 21177, subd. (a).) This exhaustion of administrative remedies requirement is jurisdictional. [Citation omitted.],] quoting *Bakersfield Citizens for Local Control v. City of Bakersfield* (2004) 124 Cal.App.4th 1184, 1199].)

" 'The requirement of exhaustion of administrative remedy is founded on the theory that the

administrative tribunal is created by law to adjudicate the issue sought to be presented to the court, and the issue is within its special jurisdiction. If a court allows a suit to go forward prior to a final administrative determination, it will be interfering with the subject matter of another tribunal.' [Citation omitted.] Consequently, the requirement of exhaustion is a jurisdictional prerequisite, not a matter of judicial discretion. [Citation omitted.] " (*Tahoe Vista Concerned Citizens v. County of Placer* (2000) 81 Cal. App. 4th 577, 588-589, 594 [addressing failure to appeal the CEQA issue and only appealing a parking issue in the administrative appeal process, which the Court concluded meant the petitioner did not have standing to make a judicial challenge on the CEQA issue].) The "court independently reviews the administrative record to determine whether the exhaustion of administrative remedies doctrine applies." (*Save Agoura Cornell Knoll v. City of Agoura Hills* (2020) 46 Cal.App.5th 665, 680.)

1. Governing Standards for Issue Exhaustion for CEQA Petitions

Public Resources Code section 21177 codifies the exhaustion rules for CEQA. (*Defend Our Waterfront v. State Lands Com.* (2015) 240 Cal.App.4th 570, 581.) Under the statute, the petitioner must generally have "objected to the approval of the project orally or in writing" before the notice of determination, and "the alleged grounds for noncompliance" with CEQA must have been "presented to the public agency orally or in writing by any person during the public comment period provided by this division or before the close of the public hearing on the project before the issuance of the notice of determination." (Pub. Res. Code § 21177 subd. (a) and (b).) Petitioner bears the burden of proving that he exhausted each issue for which he seeks judicial review by demonstrating the issue was raised at the administrative level. (*Sierra Club v. City of Orange, supra*, 163 Cal. App. 4th at 536.) (*See also Citizens for Responsible Equitable Environmental Development v. City of San Diego* (2011) 196 Cal.App.4th 515, 527; *North Coast Rivers Alliance v. Marin Municipal Water Dist. Bd. of Directors* (2013) 216 Cal.App.4th 614, 624.)

The Petitioner himself does not have to have raised the issue; if the Petitioner participated in the administrative proceedings, the Petitioner can raise grounds for noncompliance raised by other commenters during the public comment period or before the close of the public hearing. (*Bakersfield Citizens for Local Control v. City of Bakersfield* (2004) 124 Cal.App.4th 1184, 1199 ["The petitioner may allege as a ground of noncompliance any objection that was presented by any person or entity during the administrative proceedings. [Citation omitted.]"].) "Although it is true the plaintiff need not have personally raised the issue [citation omitted], the exact issue raised in the lawsuit must have been presented to the administrative agency so that it will have had an opportunity to act and render the litigation unnecessary. [Citation omitted.]" (*Resource Defense Fund v. Local Agency Formation Com.* (1987) 191 Cal.App.3d 886, 894, disapproved on other grounds in *Voices of the Wetlands v. State Water Resources Control Bd.* (2011) 52 Cal.4th 499, 529.) (*See also Sierra Club v. City of Orange, supra*, 163 Cal.App.4th at 535.)

A petitioner meets the issue exhaustion requirement if the grounds for noncompliance with CEQA asserted in the petition were raised by any person during the public comment period or before the close of the public hearing that approved the project. (*California Native Plant Society v. City of Rancho Cordova* (2009) 172 Cal.App.4th 603, 616.) "To satisfy the exhaustion doctrine, an issue must be 'fairly presented' to the agency. [Citation omitted.] Evidence must be presented in a manner that gives the agency the opportunity to respond with countervailing evidence. [Citation omitted.]" (*Citizens for*

Responsible Equitable Environmental Development, *supra*, 196 Cal.App.4th at 527-528 [letters with only "general, unelaborated objections [are] insufficient to satisfy the exhaustion doctrine"].)

The Court in *Sierra Club v. County of Orange*, *supra*, 163 Cal.App.4th 523 reiterated, "To advance the exhaustion doctrine's purpose '[t]he "exact issue" must have been presented to the administrative agency' [Citation omitted.] While 'less specificity is required to preserve an issue for appeal in an administrative proceeding than in a judicial proceeding' because, . . . parties in such proceedings generally are not represented by counsel . . . [citation]' [citation omitted], 'generalized environmental comments at public hearings,' 'relatively . . . bland and general references to environmental matters' [citation omitted], or 'isolated and unelaborated comment[s]' [citation omitted] will not suffice. The same is true for '[g]eneral objections to project approval . . . [Citations.]' [Citation omitted.] '[T]he objections must be sufficiently specific so that the agency has the opportunity to evaluate and respond to them. [Citation.]' [Citation, most internal quotation marks omitted.]" (*Id.* at 535-536.)

Petitioner acknowledges the issue exhaustion requirement of Public Resources Code section 21177. He alleges he submitted comments before the City's June 10, 2025 approvals. (FAP ¶ 16.)

The Court measures the sufficiency and specificity required for pre-approval objections to be made to the City under this case law, as well as three decisions highlighted by the City in its reply brief which illustrate the "exact issue" standard in practice as construed by the Courts. For example, in *Planning & Conservation League v. Castaic Lake Water Agency* (2009) 180 Cal. App. 4th 210, the appellants objected to a portion of the draft EIR regarding the "Monterey Plus settlement agreement as 'piecemeal and startlingly inaccurate,' failing to inform of the potential impact of an applicable agency's review of the project, and that proceeding without waiting for the review outcome "impaired Castaic's assessment of the transfer's environmental effects." (*Id.* at 250.) The Court held that these objections did not apprise the water agency of the appellants' attack raised in the CEQA petition, specifically their attack on "the adequacy of the analytic route drawn in the EIR between the pending DWR Monterey Agreement EIR and the water delivery scenarios. Although appellants' first objection questioned whether a portion of the EIR properly acknowledged the relevance of DWR's review to the Kern-Castaic transfer, the objection sought only an admission that DWR's review 'could affect' the transfer in some manner. As appellants acknowledge, they never specifically objected to the EIR's discussion of the scenarios. Accordingly, the objection did not fairly apprise Castaic that the EIR did not adequately explain the connection." (*Id.* at 250-251 [emphasis added].) The Court held the issue was not exhausted.

In *North Coast Rivers Alliance v. Marin Municipal Water Dist. Bd. of Directors* (2013) 216 Cal.App.4th 614, public agency argued that the petitioner failed to exhaust its administrative remedies as to the consistency of the "Ridgecrest A tank with the Countywide Plan," and the Court of Appeal agreed, reversing the trial court's ruling that found a CEQA violation on that unexhausted ground. Reviewing the comments that specifically mentioned the particular tank, the Court rejected that the comments were specific enough to satisfy the exhaustion requirement for the claims made in the petition, which alleged the EIR "failed to analyze conflicts with policies in the Countywide Plan" regarding a specific cited open space policy, community design policy, and four other specifically identified policy goals. (*Id.* at 631.)

One letter that raised the particular tank location stated that "the tank is 'located on publicly-owned

open space land,' which 'automatically creates a conflict between [the District] and the public agencies which hold the open spaces in public trust for uses that are incompatible with [the District's] proposed use,' " but the Court found the comment "did not apprise the District of any specific inconsistencies with policies or programs in the Countywide Plan. Rather, the letter asked the District to consider alternative sites not designated as open space. The letter also asked the District to revise its mitigation measures so that replacement open space land would be located within Tiburon and that the town be consulted in identifying suitable replacement land." (*Id.* at 632.) In response to this and two other comments stating that "placing the tank at the Ridgecrest A site would impact land designated as open space in the Countywide Plan," the public agency revised its mitigation measures which is what the commenters requested. (*Id.*) (*See also South of Market Community Action Network v. City and County of San Francisco* (2019 33 Cal.App.5th 321, 347 [holding "wind issues" not exhausted; commenters raised "general concerns about the amount of wind generated" by the project, " 'wind tunnel' " effects, and requests for mitigation measures for them, but the "general comments" were insufficient to exhaust the issues raised on appeal in that case, which were (a) inappropriate comparison of the revised project to the initially proposed office and residential scheme and not to existing conditions as required by CEQA, lack of compliance with a San Francisco Planning Code provision requiring the applicant for a project meeting certain wind effect limits to show there could not be an alternative building design to avoid the wind effects, and that the EIR's reliance on "wind baffling" measures in the design development rather than imposing mitigation measures in the EIR as CEQA requires].)

2. The Causes of Action in the FAP

The FAP challenges the City's June 10, 2025 approval of an Updated Climate Action Plan ("Updated CAP") and a CEQA Greenhouse Gas Emissions Thresholds and Guidance Report ("GHG Guidance") which were approved without the City conducting any subsequent or supplemental CEQA review. (FAP ¶ 1, AR 1 Notice of Determination ("NOD").) Petitioner alleges there have been "changed circumstances" related to the assumptions regarding greenhouse gases (GHG) and transportation on which the Environmental Impact Report ("EIR") for the General Plan 2040 were based. (FAP ¶ 4.) He contends the changed circumstances "bear directly on Citywide GHG emissions, vehicle miles traveled ("VMT"), and the feasibility and effectiveness of the mitigation structure referenced" in the General Plan 2040 EIR. (FAP ¶ 4.)

Petitioner expands on the "changed circumstances" he contends have occurred since the General Plan 2040 EIR was certified on December 12, 2023. (FAP ¶ 13.) He alleges "shifts in the City's transportation demand patterns, adjustments to its administrative structure for transportation demand management, and evolving VMT-related baseline conditions that affect how the Updated Cap must be evaluated under CEQA," and changes based on the City's implementation of development strategies shifting downtown from office and commercial to "higher density residential and mixed-use development," adjusting transportation demand management ("TDM") responsibilities, and adopting transportation and parking policy changes. (FAP ¶¶ 15, 31.) (*See also* FAP ¶¶ 20, 32.) Petitioner also alleges the City has not adopted or clearly disclosed or applied "locally tailored CEQA implementing procedures and thresholds of significance – particularly for GHG and transportation/VMT impacts – as required by" various provisions of CEQA. (FAP ¶¶ 6, 33.) He alleges the Updated CAP and GHG Guidance "are being used as de facto thresholds and mitigation guidance

without adequate CEQA review." (FAP ¶ 6.)

Petitioner alleges, among other things, that the Updated CAP targets for GHG reduction, and that the Updated CAP and GHG Guidance define how projects will be evaluated for consistency with state climate goals, how the significance of GHG impacts will be determined, and how the adequacy of mitigation measures and CAP consistency will be assessed. (FAP ¶ 29.) He alleges the City's "local CEQA implementation framework is incomplete and insufficiently transparent" in several respects, including adopting and updating thresholds of significance, the relationship between the Updated CAP and GHG Guidance and the General Plan 2040, and City remedies for challenging the City's CEQA compliance. (FAP ¶ 35.)

a. CEQA Violation for Failure to Perform Subsequent or Supplemental Environmental Review Before Approving Updated CAP and GHG Guidelines – 1st C/A

Petitioner alleges three causes of action. He alleges a violation of CEQA for failure by the City to perform a "subsequent environmental review" and approval of the Updated CAP and GHG Guidelines based on the General Plan 2040 EIR. (FAP 1st C/A, ¶ 45.) He alleges the City violated CEQA in this regard because there were "substantial changes in GHG-reduction strategies, thresholds of significance, and the circumstances under which the GP 2040 EIR's mitigation structure was to be implemented." (FAP ¶ 45.) (*See also* FAP ¶ 46 [alleging changes allegedly made by the Updated CAP and GHG Guidelines, the changed circumstances regarding policy and regulatory actions, development and transportation, and new information that could not have been known when the General Plan 2040 EIR was certified].)

b. CEQA Violation for Inadequate Environmental Analysis of Updated CAP and GHG Based on Material Changes – 2nd C/A

Petitioner alleges a violation of CEQA for failure to proceed in the manner required by law based on alleged inadequate analysis of the Updated CAP and GHG Guidelines pursuant to CEQA because the approval of the Updated CAP and GHG Guidelines was based on assumptions in the General Plan 2040 EIR that he contends have materially changed since the EIR was certified in late December 2023. (FAP 2nd C/A, ¶¶ 51-54.) He alleges the Updated CAP and GHG Guidelines "alter how project- and plan-level GHG impacts will be evaluated, what constitutes a significant impact, and what constitute adequate mitigation strategies." (FAP ¶ 52.) He asserts the City failed to prepare "any CEQA document" describing the changes, evaluating their environmental implications, or explaining how state climate guidance and "VMT practices" have been incorporated and applied. (FAP ¶ 52.)

c. CEQA Violation Because City Did Not Demonstrate Updated CAP and GHG Guidelines Will Implement the Mitigation Monitoring and Reporting Under General Plan 2040 – 3rd C/A

Petitioner alleges a cause of action for violation of CEQA based on inadequate mitigation monitoring and deferral of mitigation. (FAP 3rd C/A, ¶¶ 56-59.) He alleges the Updated CAP and GHG Guidelines are "integrally related" to the General Plan 2040 EIR mitigation framework, but the City has not "clearly identified" how the measures and thresholds will be enforced, the performance standards that will be used, and the mitigation monitoring which will ensure the General Plan 2040 EIR GHG

reductions are achieved, the effect of which is "unlawful deferral of mitigation and failure to adopt enforceable" mitigation monitoring mechanisms. (FAP ¶¶ 57, 58.)

3. FAP Claims Compared to Administrative Record of Objections to Approval of Updated CAP and GHG Guidelines

Bearing in mind that Petitioner bears the burden of proving exhaustion, Petitioner's opposition cites only to his May 19, 2025 written comments to the City on the Updated CAP and GHG Guidelines as proof of exhaustion, comments which were noted in the transcript of the hearing included in the record when the City Council approved the Updated CAP and GHG Guidelines. (Opp. p. 6, ll. 133-139; AR 4433-4441 [Swanson May 19, 2025 email]; AR 4339.) Swanson's May 19, 2025 cover email attaches a five-page Exhibit A "Detailed Itemized Commentary on Plan-by-Plan Contradictions with San Ramon's Draft Climate Action Plan" ("Commentary"). The Court will analyze Swanson's May 19, 2025 email and the Commentary in relation to the claims pled in the FAP.

a. May 19, 2025 Cover Email

In the May 19, 2025 cover email, Swanson states under the heading, "Rebuilding Planning Integrity or Risking Fiscal and Legal Collapse," that "San Ramon's CAP presents itself as a credible strategy for climate mitigation. Yet it is built on unreliable transit assumptions, unenforced TDM structures, and fragmented capital priorities. It is not a plan, it is marketing. [¶] The systemic failure to align budget, land use, transit planning, housing policy, and institutional accountability renders it legally questionable, fiscally vulnerable, and operationally hollow. [¶] Until the City prepares and adopts a Transportation Master Plan, commits to implementing already adopted planning documents, and restores public-facing accountability structures, its CAP cannot be considered a serious policy instrument. [¶] These comments, therefore, function not as feedback but as a formal warning and foundation for further legal and administrative scrutiny." (AR 4435-4436.) Nothing in the May 19, 2025 cover email mentions any changed circumstances mandating subsequent or supplemental review under CEQA in order for the City to approve the Updated CAP and GHG Guidelines. CEQA is not mentioned in the email.

b. Introduction in the Commentary

The Commentary contains the only express references to CEQA. The introductory paragraph of that document explains the document provides "detailed, plan-by-plan analysis of contradictions, omissions, and failures to implement commitments stated in previous City planning documents. The intent is to show not just inconsistencies in strategy, but the complete lack of execution capacity that renders the CAP an aspirational, nonbinding marketing document—not a functional blueprint." (AR 4437 [emphasis added].) The document does not indicate it is intended to demonstrate why subsequent or supplemental environmental review of the Updated CAP or GHG Guidelines is required under CEQA, nor is there any reference to "changed circumstances" or "material changes" warranting additional CEQA environmental analysis prior to the City's approval of the Updated CAP or GHG Guidelines.

Nothing in the statement that there are "contradictions between the CAP" and the City's previously adopted plans (AR 4437) fairly apprises the City that subsequent or supplemental environmental review was necessary under CEQA or that there were material changes in circumstances that required

subsequent or supplemental environmental review under CEQA, as Petitioner alleges in his first cause of action. The broad statement that there are "contradictions" between the Updated CAP and previously approved plans also does not alert the City to Petitioner's specific contentions in his second cause of action, namely that (a) the City's approval of the Updated CAP and GHG Guidelines which rely on the General Plan 2040 EIR do not "adequately analyze or disclose the . . . environmental consequences under current conditions"; or (b) the City was required to prepare a CEQA document with components described in FAP ¶ 52.

The Commentary does not apprise the City of Swanson's claim that the City had to prepare a new environmental document (a) describing how the Updated CAP and GHG Guidelines alter how GHG impacts will be evaluated, (b) evaluating the "environmental implications [of the alterations] using an accurate and stable baseline; or (c) explaining how San Ramon is incorporating and applying "new State-level climate guidance and VMT practices." (FAP ¶ 52.) The only reference to State-level agencies is in Swanson's May 19, 2025 cover email under the heading "Contradictory Use of Federal, State, and Regional Grant Funding," which focuses on use of funds, not state climate guidance of VMT practices. (AR 4435 [emphasis added].) The statements in the May 19, 2025 cover email and introduction in the Swanson Commentary also do not apprise the City that he contends the CAP Update is supplying a mitigation measure under the General Plan 2040 EIR that is inadequate or impermissibly deferring mitigation provided under that EIR as alleged in his third cause of action.

c. Item 2 - General Plan 2040 EIR Comments

In Item 2, "San Ramon General Plan 2040 Final EIR vs. CAP Policy Commitments," Petitioner asserts that the CAP "fails to align" with multiple mandatory mitigation measures included in the General Plan 2040 EIR. The Swanson Commentary cites three contradictions with the mandatory mitigation measures: (1) Mitigation Measure TRANS-2c in the EIR, which Petitioner contends required the City to prepare a Multimodal Transportation Plan, which had not been prepared, even though the Updated CAP "refers to multimodal infrastructure as foundational"; (2) the EIR includes a commitment to reducing VMT, but he contends another policy enacted by the City (FAR reductions, lower density residential development) violates that commitment; and (3) the Updated CAP shows a 14% transit mode share by 2030, which Petitioner contends conflicts with the General Plan 2040 EIR data and assumptions based on "significantly lower modal expectations" without any indication the figures were "reconciled or updated." (AR 4438.) He contends the Updated CAP "builds its emissions-reduction claims on transit, VMT, and density policies" that conflict with the EIR mitigation. (AR 4438.)

While the comments indicate Swanson believes the Updated CAP and GHG Guidelines conflict with or do not align with the General Plan 2040 EIR, nothing in these comments raises any need for subsequent or additional environmental review under CEQA before the Updated CAP or GHG Guidelines can be approved, or indicate that there have been substantial changes in circumstances from when the EIR was adopted, or state that any "new information of substantial importance" exists that was not available when the EIR was certified that would warrant additional environmental review before the Updated CAP and GHG Guidelines are approved. (FAP 1st C/A ¶¶ 45, 46.) Petitioner does not assert a CEQA violation based on inadequate analysis under CEQA relating to the approval of the Updated CAP and GHG Guidelines because the General Plan 2040 EIR "assumptions regarding transportation demand, mode sharing - and their role in mitigating GHG impacts - have materially

changed since the EIR was certified." (FAP 2nd C/A, ¶¶ 51, 53.)

The comments, however, address the claim Petitioner makes in his third cause of action. The statement in Item 2 specifically cites to one of the mitigation measures provided for in the EIR that had not been prepared but which he contends is "foundational" to the Updated CAP, and another part of the Item 2 comment indicates that the EIR had "significantly lower modal expectations" than that in the Updated CAP. If the CAP Update is supposed to provide Mitigation Measure TRANS-2c for the GHG emission impacts of the General Plan 2040, a fair interpretation of these comments is that the CAP Updated does not fulfill that purpose. A fair interpretation of the third cause of action is that Petitioner contends the Updated CAP and the GHG Guidelines do not fulfill the mitigation monitoring required under the General Plan 2040 EIR. (FAP 3rd C/A ¶¶ 56-58.)

d. Items 3, 5, 7 and 8 – CityWalk Plan, Floor Area Ratio Reductions, and Housing Comments

Item 3 "CityWalk Master Plan EIR vs. CAP Mode Shift and Transit Objectives" states that the CAP Update references transit hubs "as future assets to achieve mode shift. [¶] However, no transit hubs have been built. The EIR's assumptions regarding trip reduction, mode shift, and VMT reduction rely on non-existent infrastructure and services." (AR 4438.) The Commentary continues, "microtransit service is not integrated into CityWalk planning," County Connection service has "no new routes or service level increases despite population and employment growth assumptions," and that the City's approved reductions in development intensity "contradict the EIR's analyzed scenario." (AR 4438-4439.)

Item 5 "San Ramon Bicycle Master Plan vs. CAP Implementation Claims" asserts that the CAP Update relies on the City's Master Bicycle Plan but implementation of that plan "remains stagnant or in conflict with capital priorities." (AR 4439.) Item 7 "Floor Area Ratio (FAR) Reductions vs. CAP Density, TOD, and GHG Goals" asserts that the City Council's approval of floor area ratio reductions at a prior meeting "directly contradicts the CAP's stated reliance on increased development intensity to support walking, transit use, and GHG reduction," and that "[t]his is not a theoretical contradiction—it's an enacted policy reversal that directly undermines the CAP's modeling, goals, and claims." (AR 4439.)

In Item 8 "Affordable Housing and Regional Housing Needs Allocation (RHNA) vs. CAP Equity and VMT Strategies," Swanson argues that the CAP Update "claims to address climate equity through strategies that expand affordable housing near jobs and services to reduce VMT and allow low-income residents to live close to where they work," but the City's housing policies have undermined the connection between housing and VMT reduction. (AR 4440-4441.)

There is no mention in these Items that subsequent or supplemental environmental review of the Updated CAP or GHG Guidelines is required under CEQA, nor is there any reference to changed circumstances or material changes warranting additional CEQA environmental review for the City's approval of the Updated CAP or GHG Guidelines. They are insufficient to show exhaustion of the issues alleged in the first and second causes of action.

These portions of the Commentary, however, do appear to raise issues similar to those alleged in Petitioner's third cause of action based on the CAP Update not meeting the General Plan EIR's mitigation monitoring or resulting in the deferral of mitigation required in the EIR that was to be

provided through the Updated CAP.

e. Item 6 - Treatment of CEQA Transportation and Mitigation Measures

Swanson cites the title of Item 6 in the Commentary as demonstrating exhaustion for all his claims, apparently because the title includes the term "CEQA." (AR 4439-4440.) In Item 6, "CEQA Transportation and Land Use Mitigation Measures Ignored," Petitioner asserts that multiple EIRs, including the General Plan 2040 EIR, require mitigation measures by which the City is required to "[m]onitor transportation impacts, VMT, and transit mode shares," "[r]equire project-level TDM programs; and [a]pply consistency checks against General Plan assumptions." (AR 4439-4440.) Petitioner continues, "Since the City dissolved its TDM Advisory Committee and lost staff capacity, these mitigations are no longer being enforced. Projects are approved without consistency findings or active transportation monitoring. The CAP never acknowledges this breakdown, despite its reliance on the same mitigations to justify its emissions reduction strategy." (AR 4440.)

The generic statement that "projects" are being approved without consistency findings or monitoring and that the Updated CAP does not acknowledge this lack of enforcement does not raise or reasonably apprise the City of the claims Petitioner now makes that the City violated CEQA in approving the Updated CAP and GHG Guidelines without performing subsequent or supplemental environmental review under CEQA, as alleged in Petitioner's first cause of action. Nothing in Item 6 raises issues or appraises the City of any claim the Updated CAP or GHG Guidelines proposed "substantial changes" from the General Plan 2040 EIR, that there were "substantial changes" of circumstances necessitating subsequent or supplemental environmental review under CEQA, or that there was "new information" requiring such subsequent or supplemental CEQA environmental review, as alleged in the first cause of action.

Similarly, Petitioner's comments in Item 6 did not fairly apprise the City of the issues and claims Petitioner is making in the second cause of action of the FAP. Petitioner's position that the mitigations in the General Plan 2040 EIR are not being enforced, or that "projects" generally are being approved without transportation monitoring did not apprise the City of Petitioner's claim that the General Plan 2040 EIR "assumptions regarding transportation demand, mode share, and the timing and content of the CAP/GHG-threshold update – and their role in mitigating GHG impacts – have materially changed since the EIR was certified," such that subsequent or supplemental environmental review under CEQA was required before the Updated CAP or GHG Guidelines could be approved. (FAP ¶ 51.) Petitioner's comments in Item 6 of the Commentary are not sufficient to apprise the City of what Petitioner is now claiming in the second cause of action of the FAP, namely that the Updated CAP and GHG Guidance allegedly "alter" either how project or plan GHG impacts will be evaluated, alter "what constitutes a significant impact" or alter what is considered adequate mitigation such that a "new CEQA document" was required. (FAP ¶ 52.)

A reasonable interpretation of these comments is a complaint that the City is not adequately enforcing the EIR's mitigation measures in these specific respects. In that regard, they raise the claim made in Petitioner's third cause of action that the Updated CAP does not provide the mitigation measures required under the General Plan 2040 EIR, or that the Updated CAP and GHG Guidelines operate to impermissibly defer mitigation required under the General Plan 2040 EIR. (FAP ¶¶ 57, 58.)

4. Conclusion as to Exhaustion of Issues

Petitioner failed to exhaust the issues raised in his first and second causes of action alleging CEQA violations. Petitioner's comments did, however, raise the failure of the proposed Updated CAP and GHG Guidelines to constitute adequate mitigation measures or to adequately implement required mitigation measures provided in the General Plan 2040 EIR, as alleged in the third cause of action. (*Compare* FAP ¶¶ 23, 24, 28, 29, 57, 58 to Commentary Items 2, 3, 5, 6, 7, and 8.)

C. Request for Hearing

Public Resources Code section 21167.4 requires a petitioner in a CEQA proceeding to file a request for hearing and serve the request within time deadlines specified in the statute. It provides in relevant part: that "[i]n any action or proceeding alleging noncompliance with this division, the petitioner shall request a hearing within 90 days from the date of filing the petition or shall be subject to dismissal on the court's own motion or on the motion of any party interested in the action or proceeding." (Pub. Res. Code § 21167.4(a).) When a party fails to comply with the deadline for filing the request for a hearing under the statute, dismissal of the proceeding is mandatory. (*Nacimiento Regional Water Management Advisory Com. v. Monterey County Water Advisory Board* (2004) 122 Cal.App.4th 961, 966.) A court may, however, grant relief from failure to make a timely request pursuant to Code of Civil Procedure section 473(b). (*Miller v. City of Hermosa Beach* (1993) 13 Cal.App.4th 1118, 1136; *Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal. App. 4th 1116, 1131-1135 [citing *Miller*, and holding an attorney's clerical calendaring error which resulted in the request being filed one week late was excusable neglect, the kind of mistake a client might make].)

In the *Nacimiento* decision, the Court held that the mandatory relief provision of Code of Civil Procedure section 473(b) where an attorney admits fault, specifically *inexcusable* neglect, does not apply to Public Resources Code section 21167.4. (*Nacimiento, supra*, 122 Cal.App.4th at 967-969.) In contrast, courts have held that the discretionary relief provision of Code of Civil Procedure section 473(b) where surprise, inadvertence, mistake, or excusable neglect is shown can provide relief from the failure to timely file the request for hearing. (*Miller, supra*, 13 Cal.App.4th at 1136; *Comunidad, supra*, 219 Cal.App.4th at 1131-1135.) Indeed, the Court in *Comunidad* reversed the trial court and held that it abused its discretion in not granting relief under Code of Civil Procedure section 473(b).

Here, on July 25, 2025, Petitioner filed an ex parte application which included a request that the Court set a hearing on the merits with a proposed briefing schedule and proposed hearing date for the merits hearing. (7/25/2025 Ex Parte Application for Order Setting CEQA Briefing Schedule and Hearing Date (Public Resources Code §§ 21167.4, 21167.6; Code Civ. Proc. § 1062.3(a); Cal. Rules of Court, rules 3.1200 et seq.).) The ex parte application was filed 11 days after the petition was filed. It explicitly cited Public Resources Code section 21167.4 as a basis for the application, and Petitioner explicitly stated that he "requests the Court to explicitly adopt the following CEQA litigation schedule clearly aligned with statutory mandates and procedural requirements: . . . CEQA Writ Hearing on Merits: January 13, 2026, at 9:00 a.m. (Department 39)." (7/25/2025 Ex Parte App. p. 4.) The Court denied the ex parte application but set a status conference for September 17, 2025 instead. (7/25/2025 Order Den. Ex Parte.) The procedure followed by Petitioner appears to be substantially in conformity with the Court's Local Civil Rule 3.46(1)(B) in effect as of July 1, 2025.

The City argues the written, ex parte application requesting that the Court set a hearing on the merits of the petition consistent with the time deadlines under CEQA, filed by Petitioner within less than 90 days after the petition was filed, is not a "request for hearing." The title of the ex parte application of Petitioner's application stated the relief included "setting CEQA . . . hearing date." (7/25/2025 Ex Parte App.) To the extent the City's position is that the written ex parte application for the Court set the CEQA merits hearing did not bear the title "request for hearing," the Court rejects that the ex parte application requesting a merits hearing did not meet the requirement of Public Resources Code section 21167.4(a). While the case law indicates that strict compliance with the time deadline for filing a written request for a hearing is required, the City has cited no authority for the proposition that any specific "magic" words are required, and that the written pleading asking the Court set a CEQA merits hearing can only satisfy the statute if titled "request for hearing." Here, Petitioner's ex parte application arguably includes both the request for hearing and an application to set the hearing and was clearly filed within 90 days after the petition. (Pub. Res. Code §§ 21167.4(a) and (c).)

D. Failure to Name City Rather Than City Council and Planning Commission in Petition and Untimely Amendment to Name City

Public Resources Code section 21167 provides in part, "An action or proceeding alleging that a public agency has improperly determined whether a project may have a significant effect on the environment shall be commenced within 30 days from the date of the filing of the notice required by subdivision (a) of Section 21108 or subdivision (a) of Section 21152." (Pub. Res. Code § 21167(b).) (*See also* Pub. Res. Code § 21167(e) ["An action or proceeding alleging that another act or omission of a public agency does not comply with this division shall be commenced within 30 days from the date of the filing of the notice required by subdivision (a) of Section 21108 or subdivision (a) of Section 21152."].)

The City also argues that Petitioner failed to comply with Public Resources Code section 21167.5 which provides, "Proof of prior service by mail upon the public agency carrying out or approving the project of a written notice of the commencement of any action or proceeding described in Section 21167 identifying the project shall be filed concurrently with the initial pleading in such action or proceeding."

There is no dispute that Petitioner timely filed a petition. Petitioner does not contest that he did not mail a copy of the petition concurrently with its filing but instead personally served the City Council and City Planning Commission. There also can be no dispute that in December 2025, Petitioner filed an amended petition that names as the sole respondent the City of San Ramon, and that the FAP was the first pleading that specifically identified "City of San Ramon" as the respondent.

The effect of such an amended pleading under general rules of civil procedure is to supersede and render inoperable the original pleading. "An 'amended' complaint supersedes all prior complaints. . . . The original ceases to 'perform any function as a pleading.'" [Citation omitted.] (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 [quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) The Court does not reach the City's arguments regarding necessary and indispensable parties under Code of Civil Procedure section 389, because the filing of the FAP eliminated the original petition, and eliminated the City Council and City Planning Commission as parties to the action as the FAP does not name either as respondent. Those parties were effectively dismissed as a result of the

filing of the FAP. Even if the City Council and City Planning Commission were proper "necessary" parties under Code of Civil Procedure section 389 whose naming in the petition may or may not have been sufficient to allow the Court to proceed without the City itself, the FAP did not merely add the City; the FAP in effect substituted the City for the City Council and City Planning Commission.

The determinative issue is whether Petitioner naming the "City of San Ramon City Council" and "City of San Ramon Planning Commission," and filing an amended petition in December 2025 changing the respondent to "City of San Ramon" was merely the correction of a misnomer, or a fatal defect in the original petition which did not name and serve the "City of San Ramon" as lead agency that could not be corrected by filing the FAP months after the deadlines under Public Resources Code section 21167.

The City contends that naming the City Council and City Planning Commission and then naming the City itself in the FAP is not merely a correction of a misnomer because the City is a distinct legal entity. Regarding the misnomer issue, both parties cite and rely on *Hawkins v. Pacific Coast Bldg. Products, Inc.* (2004) 124 Cal. App. 4th 1497. The Court explained that a party may amend a pleading under Code of Civil Procedure section 473 "by correcting a mistake in the name of a party, or a mistake in any other respect" (Code Civ. Proc. § 473(a).) The Court in *Hawkins* explained the general rule that adding a new defendant does not relate back to the original complaint, and the statute of limitations as to the new defendant is applied based on the date that defendant is added. (*Id.* at 1503.) However, the "general rule" is subject to an exception "where an amendment does not add a 'new' defendant, but simply corrects a misnomer by which an 'old' defendant was sued." (*Id.*)

The Court examined the relevant analysis for whether the amendment should be considered as merely correcting a misnomer: "Whether a plaintiff may amend the complaint to change a party's description or characterization 'after the statute of limitations has run depends on whether the misdescription or mischaracterization is merely a misnomer or defect in the description or characterization, or whether it is a substitution or entire change of parties. In the former case an amendment will be allowed; in the latter, it will not be allowed.' [Citations omitted.] Further, as 'Witkin has observed, "the allowance of amendment and relation back to avoid the statute of limitations does not depend on whether the parties are technically or substantially changed; rather the inquiry is as to whether the nature of the action is substantially changed." ' [Citation omitted.]" (*Id.* at 1504 [emphasis added].)

Applying the misnomer standards in that case where the plaintiff named the defendant by its fictitious business name rather than its legal name, the Court stated: "Allowing *Hawkins* to substitute the correct name for his original misdescription of the only named defendant neither changes the nature of the action nor represents an 'entire change of parties.' [Citation omitted.] *Hawkins* was at all times attempting to sue a single entity, his former employer of three years, for wrongful termination. . . . [¶] In our view, *Hawkins* 'committed an excusable mistake attributable to . . . the use of fictitious names' [citation omitted]." (*Id.* at 1505 [holding relation back doctrine should have been applied and demurrer overruled].)

Examples of decisions in which the proposed amendment was allowed as a misnomer include *Mayberry v. Coca Cola Bottling Co.* (1966) 244 Cal.App.2d 350, cited by the City, in which the plaintiff sued "Coca Cola Bottling Company of Sacramento, a partnership" but sought to amend when the plaintiff learned at trial the correct name and capacity of the defendant was "Coca Cola Bottling

Company of Sacramento, Ltd." which was a separate corporation, though the entities had a business relationship and the partnership and corporation shared three senior officers. (*Id.* at 351.) The Court of Appeal upheld the amendment based on the fact there was some substantial identity between the two defendants, the plaintiff showed excusable mistake, and there was an awareness by the defendant of the true tortfeasor that the claims were being asserted against it. (*Id.* at 354.) The Court finds these factors present here and support allowing the amendment. (*See also Carr v. Barnabey's Hotel Corp.* (1994) 23 Cal. App. 4th 14, 20-23 [citing the *Mayberry* decision, finding allowing an amendment of verdict after trial and deeming it to relate back was proper in an employment discrimination action, where the plaintiff employee could have discovered the correct name of her employer to sue from her W-2 forms (Peppercorn, Ltd., the true employer), but named only Barnabey's Hotel Corporation which had ceased doing business years before, with Peppercorn doing business as Barnaby's Hotel].)

The City also cites *Thompson v. Palmer Corp.* (1956) 138 Cal.App.2d 387 as an illustration of a case in which amendment was not allowed. There, the Court of Appeal upheld the dismissal of a corporation based on the statute of limitations, concluding the misnomer doctrine did not apply. In that case, the plaintiff sued four individuals by name "doing business as Bob 'N Del," as well as Palmer Corporation as defendants, and alleged the individuals were at all times "associated together as general partners and doing business under the fictitious name and style Bob 'N Del." More than a year after the accident, the plaintiff tried amend the complaint to name "Bob 'N Del, a corporation." (*Id.* at 389.) The Court found the dismissal proper because "'Bob 'N Del' was not designated as a party defendant in the original complaint. It was not designated as a partnership, as urged by plaintiffs. If it had been designated as a party defendant and had been described as a partnership, we would have a different question. The original complaint designated R. C. Tucker, Jr., D. D. Rohrbaugh, R. C. Tucker, Sr., David Ritchie, and Jack Alber as individuals doing business as Bob 'N Del. There was no misnomer or mistake in the name of a party. The only misdescription or mischaracterization was in describing the individuals as 'doing business as Bob 'N Del.' " (*Id.* at 396.)

The Court finds this case to be more like *Hawkins*, *Mayberry*, and *Carr* than *Thompson*. The original petition alleged the role the City Council played in approving the Updated CAP and GHG Guidelines being challenged in the petition. The name City of San Ramon was in the name of the caption qualified by "City Council" and "Planning Commission," the agents of the City's government that approved the Updated CAP and GHG Guidelines on behalf of the City. The Court finds allowance of the amendment as a misnomer under those decisions is proper under the circumstances.

18. 9:00 AM CASE NUMBER: N25-1793
CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. CALIFORNIA OCCUPATIONAL SAFETY AND HEALTH APPEALS BOARD
***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**
FILED RE: ROBERT D. AYERS
FILED BY: DRILL TECH DRILLING & SHORING, INC.
TENTATIVE RULING:
Summary

Petitioner Drill Tech Drilling & Shoring, Inc. ("Petitioner") filed a Notice of Hearing on Verified Application for Admission *Pro Hac Vice* filed by Robert D. Ayers. The Motion is **granted**. No appearance is required on May 13, 2026.

Background

On December 3, 2025, Petitioner filed Notice of Hearing, through Counsel Holland & Hart, LLP, and the Verified Application for Admission of Robert D. Ayers to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motion was supported by the Verified Application of Robert D. Ayers, and the Declaration of Counsel Matthew Hippler. The Proof of Service shows that service was accomplished via electronic service and First Class Mail on December 3, 2026, including service to the Office of Special Admissions of the California State Bar. The Court did not receive timely oppositions to this Motion.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state.

Upon review, the Court finds that the verified application of Robert D. Ayers declares facts under penalty of perjury to support the application under CRC Rule 9.40. Mr. Ayers is an attorney licensed to practice in the States of Texas, Utah, Wyoming, Washington and in the Federal District Courts of Texas, Wyoming, and North Dakota. He represents that he is employed by Holland & Hart, LLP. He is not a member of the California State Bar, nor is he a resident of the State of California, nor does he have regular employment or substantial business in California. He represented to the Court that he not been suspended, disbarred or resigned as counsel. No court has denied his application to be admitted *Pro Hac Vice*.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. Defendant's motion is **granted**.
2. Robert D. Ayers, Esq, is admitted to appear as Counsel *Pro Hac Vice* for the duration of this case.
3. Counsel Hippler is ordered to prepare and e-file a proposed order granting Verified Application of Robert D. Ayers to appear as Counsel *Pro Hac Vice*, with a copy of this ruling attached thereto.
4. No appearance is required on May 13, 2026.

19. 9:01 AM CASE NUMBER: C24-00366

CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.

*HEARING ON MOTION FOR DISCOVERY COMPEL COMPLIANCE FROM DEFENDANT DAVID WHITE & ASSOCIATES WITH REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE
FILED BY: DRILL TECH DRILLING & SHORING, INC.

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 19, 20, 21 and 22. By stipulation and order, the following motions were consolidated by the Parties for hearing on Department 16's May 13, 2026 law and motion calendar:

1. Plaintiff Patricia Mainer's Motion to Compel Further Responses from Defendant David White & Associates to Amended Requests for Admission, Set One;
2. Plaintiff Drill Tech Drilling & Shoring's Motions to Compel from Defendant David White & Associates Further Responses to Form Interrogatories, Set Two,
3. Plaintiff Drill Tech Drilling & Shoring's Motions to Compel Further Responses from Defendant David White & Associates to Amended Requests for Admission, Set One, and
4. Plaintiff Drill Tech Drilling & Shoring's Motions to Compel Compliance from Defendant David White & Associates with Request for Production of Documents, Set One

The Court **vacates** all four (4) of the foregoing hearings on these discovery motions, and any other subsequently filed discovery motion, and appoints, *sua sponte*, a Discovery Referee to hear all of the foregoing discovery motions, and any and all discovery motions, filed by the Parties in this litigation as set forth in this tentative ruling.

Background

In this case, Plaintiffs allege claims relating to "Key Person" life insurance policies purchased on behalf of Drill Tech Drilling and Shoring, Inc. employees. Specifically, Plaintiffs allege that the life insurance policies were represented as having a fixed benefit amount, when they in fact only had a variable benefit amount, resulting in compensatory and extra-contractual damages. Plaintiffs also claim punitive damages against Defendants and equitable relief in the form of contract reformation. Defendants deny these allegations and assert affirmative defenses.

Plaintiffs have served discovery and have remaining discovery disputes that they were unable to resolve informally with Defendants through the meet and confer process.

Analyses

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the discovery statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil

Discovery Practice (4th ed Cal CEB) §15.32.C. Additionally, “trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes.” California Civil Discovery Practice (4th ed Cal CEB) §15.38.6. Here, Counsel appeared to have met and conferred, but are unable to resolve the discovery disputes before Plaintiffs filed their motions.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Cal. Code of Civ. Proc. §§639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions and nature of underlying legal issues, require discovery reference. Cal. Code of Civ. Proc. Section 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court also finds, here, that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court makes this finding on the grounds that there are four pending discovery motions on calendar in the matter, scheduled for May 13, 2026. These motions and opposition filed to date consists of over 340 pages. The Court finds that Counsel are unable to effectively meet and confer to arrive an informal resolution of the discovery disputes, requiring this Court to intervene. This Department manages 2700 active cases and prefers not to defer hearings on its already impacted motion calendar to conduct the diligent review necessary to rule on these motions.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and ruling.

Ruling

Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640 and makes the following orders:

1. The Discovery Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear the Discovery Motions scheduled for hearing on May 13, 2026, and any and all subsequently filed discovery motions.
2. By no later than May 20, 2026, the Parties are ordered to meet and confer pursuant to Cal.

Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, e-mailed to dept16@contracosta.courts.ca.gov by May 22, 2026. The Court will select one of the proposed referees by unreported minute order. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

3. No party has established an economic inability to pay a pro rata share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
4. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639 that conforms to this ruling, approved as to form by Defendant's Counsel, attaching this tentative ruling no later than five (5) days after the hearing on this matter. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
5. The Clerk of Court shall vacate all of Plaintiff's Discovery Motions calendared for May 13, 2026. Any and all future discovery disputes shall be referred to the Discovery Referee until further orders of the Court.
6. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

20. 9:01 AM CASE NUMBER: C24-00366

CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO AMENDED REQUEST FOR ADMISSION, SET ONE**

FILED BY: DRILL TECH DRILLING & SHORING, INC.

TENTATIVE RULING:

See Line 19.

21. 9:01 AM CASE NUMBER: C24-00366

CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO FORM INTERROGATORIES, SET TWO**

FILED BY: DRILL TECH DRILLING & SHORING, INC.

TENTATIVE RULING:

See Line 19.

22. 9:01 AM CASE NUMBER: C24-00366
CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO AMENDED REQUESTS FOR ADMISSION, SET ONE
FILED BY: DRILL TECH DRILLING & SHORING, INC.
TENTATIVE RULING:
See Line 19.

Law & Motion
Add On

23. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
*HEARING ON MOTION IN RE: LEAVE TO FILED AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Drew Malm's ("Plaintiff") Motion for Leave of Court to file a Third Amended Complaint ("TAC") pursuant to Code Civ. Proc., § 473(a)(1), so that it may add a cause of action for the Breach of Covenant and Fair Dealing. Defendant filed this motion on January 12, 2026. The Motion is opposed by all named Defendants.

The Court is inclined to grant Plaintiff's motion but is unable to at this time due to the procedural defects outlined below. As explained below, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court's ruling. The Parties are ordered to appear to discuss dates for continuing the motion.**

Procedural Posture

There is a Motion for Summary Judgment/Adjudication brought by all named Defendants to be heard on this same calendar.

A trial date has not been set.

Legal Standard

It is well-established under California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior*

Court (1989) 215 Cal.App.3d 155, 158.) “If the motion to amend is timely made and... granting...the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.)

It is also a well-known policy of the law to permit amendments of pleadings liberally in order that litigation may be tried on its merits. (*Cardenas v. Ellston* (1968) 259 Cal App. 2d 232.) Courts are liberal in allowing amendments of complaints in order that, if possible, no litigant will be deprived of his day in court because of mere technicalities of pleading. (*Barr v. Carroll* (1954) 128 Cal. App. 2d 23.) California’s liberal policy favoring amendment applies “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

Analysis

Lack of Prejudice Since Defendants’ MSJ/A Has Been Decided

Defendants’ strongest argument against granting leave to amend is that it would render its Motion for Summary Judgment/Adjudication (“MSJ”) moot.

Since the Court has heard and decided Defendants’ MSJ, the potential prejudice to Defendants to have their MSJ rendered moot is no longer an issue.

Plaintiff Additional Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing is Procedurally Proper

First, Rule 3.1324(a) requires that a motion to amend must identify every proposed deletion and addition by page, paragraph, and line number. Defendant has filed a proposed redlined amended pleading which meets this requirement.

Second, Rule 3.1324(b) requires a supporting declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. Plaintiff’s Counsel Cary D. McReynold’s declaration fails to address any of the four items relevant to the rule. (See McReynold Declaration ¶¶ 1-3.)

Conclusion

The Court is inclined to grant Plaintiff’s motion but is unable to at this time due to the procedural defects outlined above. As analyzed above, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court’s ruling. The Parties are ordered to appear to discuss dates for continuing the motion.**